

Merseyside Metropolitan Railway Act 1975

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ELIZABETH II



1975 CHAPTER xi

An Act to empower the Merseyside Passenger Transport Executive and the British Railways Board to construct works and to acquire lands; and for other purposes.

[22nd May 1975]

WHEREAS—

(1) The Merseyside Passenger Transport Executive (hereinafter referred to as “the Executive”) were established under the Transport Act 1968 as the Passenger Transport Executive for an area mainly comprised within the metropolitan county of Merseyside which, under the Local Government Act 1972, is now the passenger transport area of the Executive: 1968 c. 73. 1972 c. 70.

(2) It is the general duty of the Executive under the said Act of 1968 to secure or promote the provision of a properly integrated and efficient system of public passenger transport to meet the needs of their area:

1962 c. 46.

(3) It is the duty of the British Railways Board (hereinafter referred to as "the Board") under the Transport Act 1962 (inter alia) to provide railway services in Great Britain and, in connection with the provision of railway services, to provide such other services and facilities as appear to them to be expedient, and to have due regard as respects all those railway and other services and facilities, to efficiency, economy and safety of operation:

1968 c. xxxv.

(4) Under powers conferred on the Board by the British Railways (Mersey Railway Extensions) Act 1968 the Board are, in agreement with the Executive, constructing a new railway in Liverpool in extension of the Mersey Railway, which provides a railway service beneath the river Mersey between Birkenhead and other parts of the Wirral peninsula and Liverpool, and, under powers conferred on them by the British Railways Act 1971, the Board are now, in agreement with the Executive, constructing additional underground railways in Liverpool in further extension of the Mersey Railway to provide a link between the railway from Southport and Ormskirk to Exchange Station, Liverpool, and the Cheshire Lines railway at Central Station, Liverpool, and to provide interchange facilities serving that railway and the Mersey Railway:

1971 c. xlv.

(5) It is expedient that provision should be made for the development of the said railways as a Merseyside Metropolitan Railway serving the Merseyside Passenger Transport Area and for the improvement of other railways serving the area, and that for this purpose the Executive and the Board should be empowered to construct the works authorised by this Act and to acquire the lands referred to in this Act:

(6) It is expedient that the other powers in this Act should be conferred upon the Executive and the Board and that the other provisions in this Act should be enacted:

(7) The purposes of this Act cannot be effected without the authority of Parliament:

(8) Plans and sections showing the lines or situations and levels of the works to be constructed under the powers of this Act and plans of the lands authorised to be acquired or used by this Act, and a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands, were duly deposited in the office of the Clerk of the Parliaments and in the Private Bill Office of the

House of Commons, with the clerk of the county council of the administrative county of the county palatine of Lancaster, with the town clerk of the city of Liverpool and with the town clerk of the county borough of Bootle, which plans, sections and book of reference are respectively referred to in this Act as “the deposited plans”, “the deposited sections” and “the deposited book of reference”:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen’s most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

1. This Act may be cited as the Merseyside Metropolitan Short title. Railway Act 1975.

2. This Act is divided into Parts as follows:—

Division of
Act into
Parts.

Part I.—Preliminary.

Part II.—Works.

Part III.—Lands.

Part IV.—Protective provisions.

Part V.—Miscellaneous and general.

3.—(1) In this Act, unless the context otherwise requires, the Interpretation. several words and expressions to which meanings are assigned by the Acts wholly or partly incorporated herewith have the same respective meanings, and—

“the Act of 1845” means the Railways Clauses Consolida-
tion Act 1845; 1845 c. 20.

“the Act of 1863” means the Railways Clauses Act 1863; 1863 c. 92.

“the Act of 1965” means the Compulsory Purchase Act 1965 c. 56.
1965;

“the Act of 1971” means the British Railways Act 1971; 1971 c. xlv.

PART I
—cont.

“ the appropriate authority ” means—

(a) in relation to the Executive's works and in relation to any land in respect of which powers for compulsory acquisition are conferred upon the Executive by this Act, the Executive;

(b) in relation to the Board's works and in relation to any land in respect of which powers for compulsory acquisition are conferred upon the Board by this Act, the Board;

“ the authorised works ” means the works authorised by this Act;

“ the Board ” means the British Railways Board;

“ the Board's works ” means Works Nos. 1 to 7 and any works, apparatus or conveniences constructed or provided by the Board as part of, or in connection with, or for the purposes of, those works or any of them;

“ the Cheshire Lines railways ” means the railway between Central Station, Liverpool, and Hough Green via Hunts Cross and the branch railway between Hunts Cross and Huskisson and “ the Cheshire Lines Branch Railway ” means the said branch railway;

“ enactment ” means any enactment, whether public general or local, and includes any order, byelaw, rule, regulation, scheme or other instrument having effect by virtue of an enactment;

“ existing ” means existing at the commencement of this Act;

“ the Executive ” means the Merseyside Passenger Transport Executive;

“ the Executive's works ” means Works Nos. 8 to 11A and any works, apparatus or conveniences constructed or provided by the Executive as part of, or in connection with, or for the purposes of, those works or any of them;

“ highway authority ” means—

(a) in the case of trunk roads, the Secretary of State;

(b) in the case of other highways, the local highway authority;

“land” includes land covered by water, any interest in land and any easement or right in, to or over land;

“the limits of deviation” and “the limits of land to be acquired” mean respectively the limits so shown on the deposited plans;

“the Secretary of State” means the Secretary of State for the Environment;

“telegraphic line” has the same meaning as in the Telegraph Act 1878; 1878 c. 76.

“the tribunal” means the Lands Tribunal; and

“the underground railways” means such portions of Works Nos. 1, 2, 3A, 3B, 4A, 4B, 5A and 5B, and any necessary works and conveniences connected therewith, as are constructed in tunnels constructed under the powers of this Act in such manner as does not necessitate the cutting through or removal of the surface soil.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment, as applied, extended, amended or varied by, or by virtue of, any subsequent enactment, including this Act.

(3) (a) Except as mentioned in paragraph (b) of this subsection all distances and lengths stated in any description of works, powers or lands shall be construed as if the words “or thereabouts” were inserted after each such distance and length, and distances between points on a railway shall be taken to be measured along the railway.

(b) This subsection does not apply to distances or lengths stated in the following provisions of this Act:—

Section 8 (Power to deviate);

Paragraph (4) of section 9 (General provisions as to construction of underground railways);

Subsection (3) of section 28 (Only subsoil or easements to be acquired under certain lands);

Paragraphs (3) and (4) of section 34 (As to highways, traffic, etc.);

Proviso to paragraph (6) of section 37 (For protection of certain statutory undertakers).

PART I
—cont.

(4) Unless the context otherwise requires, any reference in this Act to a work identified by the number of the work shall be construed as a reference to the work of that number authorised by this Act.

Incorporation
of Railways
Clauses Acts.

4. The following Act and Part of an Act, so far as the same are applicable for the purposes and are not inconsistent with or varied by the provisions of this Act, are incorporated with and form part of this Act, and this Act shall be deemed to be the special Act for the purposes of the said incorporated enactments:—

The Act of 1845 (except sections 7, 8, 9, 11, 12, 13, 17, 19, 20, 22 and 23 thereof) and Part I of the Act of 1863 (except sections 13 to 19):

Provided that—

(a) for the purposes of the provisions of the Act of 1845 and the Act of 1863, as incorporated with this Act, the expression “the company”, where used in the said incorporated provisions, means the appropriate authority;

(b) the provisions of sections 18 and 21 of the Act of 1845 shall not extend to regulate the relations between the appropriate authority and any other person in respect of any matter or thing concerning which those relations are regulated in any respect by the provisions of—

1950 c. 39.

(i) Part II of the Public Utilities Street Works Act 1950; or

(ii) section 37 (For protection of certain statutory undertakers) of this Act.

Application
of Part I of
Act of 1965.

1946 c. 49.

5.—(1) Part I of the Act of 1965 (except sections 4, 24 (5) and 27 thereof and paragraph 3 (3) of Schedule 3 thereto), in so far as it is applicable for the purposes of this Act and is not inconsistent with the provisions thereof, shall apply to the compulsory acquisition of land under this Act as it applies to a compulsory purchase to which Schedule 1 to the Acquisition of Land (Authorisation Procedure) Act 1946 applies and as if this Act were a compulsory purchase order under the said Act of 1946.

(2) Section 11 (1) of the Act of 1965 (which relates to notice of entry), as so applied, shall have effect as if for the word

“fourteen” there were substituted, in respect of the lands referred to in Schedule 3 to this Act, the word “twenty-eight” and, in the case of any other lands, the word “ninety-one”.

PART I
—*cont.*

(3) The Lands Clauses Consolidation Act 1845 shall not apply to the acquisition of land under this Act.

PART II

WORKS

6. Subject to the provisions of this Act, the Board may, in the lines or situations shown on the deposited plans and according to the levels shown on the deposited sections, make and maintain the works hereinafter described, with all necessary works and conveniences connected therewith in the metropolitan county of Merseyside (formerly in the city of Liverpool and the county palatine of Lancaster):—

In the city of Liverpool—

Work No. 1 A railway (1,484 metres in length) commencing by a junction with the railway (Work No. 3) authorised by the Act of 1971 below a point 75 metres south of the junction of Heathfield Street with Renshaw Street and terminating by a junction with the existing Waterloo Dock Branch Railway between Waterloo Dock Goods Station and Edge Hill Station at the point where that railway passes below Mason Street:

Work No. 2 A railway (1,715 metres in length) commencing by a junction with the railway (Work No. 4) authorised by the Act of 1971 below a point 35 metres west of the junction of Wood Street with Berry Street and terminating by a junction with the Waterloo Dock Branch Railway at the said point where that railway passes below Mason Street.

In the city of Liverpool and in the metropolitan district of Knowsley (formerly in the urban district of Huyton-with-Roby)—

Work No. 3A A railway (1,945 metres in length) commencing by a junction with the existing railway between Edge Hill Station, Liverpool, and St. Helens (hereafter in this section referred to as “the St. Helens railway”) at a point 125 metres east of the bridge

PART II
—cont.

carrying Mill Lane over that railway and terminating by a junction with that railway at a point 77 metres west of the bridge carrying that railway over Greystone Road:

Work No. 3B A railway (1,947 metres in length) commencing by a junction with the St. Helens railway at the said point 125 metres east of the bridge carrying Mill Lane over that railway and terminating by a junction with that railway at the said point 77 metres west of the bridge carrying that railway over Greystone Road.

In the city of Liverpool—

Work No. 4A A railway (488 metres in length) commencing by a junction with the railway (Work No. 3A) below a point 244 metres east of the junction of Renville Road with Bowring Park Road and terminating by a junction with the Cheshire Lines Branch Railway at a point 66 metres north of the bridge carrying Origen Road over that railway:

Work No. 4B A railway (506 metres in length) commencing by a junction with the railway (Work No. 3B) below a point 185 metres east of the said junction of Renville Road with Bowring Park Road and terminating by a junction with the Cheshire Lines Branch Railway at the said point 66 metres north of the bridge carrying Origen Road over that railway:

Work No. 5A A railway (557 metres in length) commencing by a junction with the railway (Work No. 3A) below a point 59 metres south-west of the junction of Jubilee Avenue with Old Thomas Lane and terminating by a junction with the Cheshire Lines Branch Railway at a point 5 metres north of the northern face of the bridge carrying Thomas Drive over that railway:

Work No. 5B A railway (561 metres in length) commencing by a junction with the railway (Work No. 3B) below a point 47 metres south of the said junction of Jubilee Avenue and Old Thomas Lane and terminating by a junction with the Cheshire Lines Branch Railway at the said point 5 metres north of the northern face of the bridge carrying Thomas Drive over that railway.

In the metropolitan district of Knowsley (formerly in the urban district of Huyton-with-Roby)—

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—cont.

Work No. 6 A railway (528 metres in length) commencing (Railway at by a junction with the St. Helens railway at a point Huyton). 104 metres east of the western end of the existing platforms of Huyton Station and terminating by a junction with the St. Helens railway at a point 9 metres west of the western end of the bridge carrying that railway over Huyton Hey Road.

In the city of Liverpool and in the metropolitan district of Sefton (formerly in the county borough of Bootle and the parish of Sefton in the rural district of West Lancashire)—

Work No. 7 A railway (2,971 metres in length) com- (Railway at mencing by a junction with the Cheshire Lines Branch Fazakerley). Railway at a point at Fazakerley South Junction 45 metres north of the northern end of the bridge carrying that railway over Walton Hall Avenue and terminating by a junction with the existing railway between Fazakerley and Bootle at a point 7 metres west of Sefton Junction.

7. Subject to the provisions of this Act, the Executive may, Power to in the lines or situations shown on the deposited plans and Executive to according to the levels shown on the deposited sections, make and make works. maintain the works hereinafter described, with all necessary works and conveniences connected therewith in the metropolitan county of Merseyside (formerly in the city of Liverpool and the county palatine of Lancaster):—

In the city of Liverpool—

Work No. 8 An interchange between road and rail (Interchange traffic at Edge Hill near the junction of Chandos at Edge Hill). Street with Tunnel Road, including bus lay-bys and the subway (Work No. 8A):

Work No. 8A A subway, stairways and ramps forming part of Work No. 8 commencing below a point 40 metres north-east of the junction of Moorgate Street with Chandos Street, passing eastwards under Tunnel Road and southwards and terminating at a point on the Waterloo Dock Branch Railway 2 metres east of the eastern portal of the tunnel where Tunnel Road passes over that railway:

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—cont.

(Interchange
at Belle Vale).

Work No. 9 An interchange between road and rail traffic at Belle Vale near the junction of Besford Road and Hartsbourne Avenue with Hedgefield Road, including a bus station and car park:

Work No. 9A A new road forming part of Work No. 9 commencing by a junction with Hedgefield Road at the junction of Hartsbourne Avenue with that road and terminating 12 metres north of the northern end of the subway carrying the footpath between South Station Road and Besford Road under the Cheshire Lines Branch Railway.

In the metropolitan district of Knowsley (formerly in the urban district of Huyton-with-Roby)—

(Interchange
at Huyton).

Work No. 10 An interchange between road and rail traffic at Huyton near the junction of Lathom Road with Huyton Hey Road, including a bus station and car parks:

Work No. 10A A new road forming part of Work No. 10 commencing by a junction with Derby Road at a point 28 metres west of the junction of Huyton Hey Road with that road and terminating by a junction with Huyton Hey Road at a point 65 metres west of the said junction of Lathom Road with that road:

Work No. 10B A new road forming part of Work No. 10 commencing by a junction with Huyton Hey Road at a point opposite to the said junction of Lathom Road with that road and terminating by a junction with Huyton Hey Road at a point 42 metres east of the junction of Church Road Huyton with that road.

In the metropolitan district of Knowsley (formerly in the urban district of Kirkby)—

(Interchange
at Kirkby).

Work No. 11 An interchange between road and rail traffic at the western end of the existing Kirkby Station, including a bus station and car park:

Work No. 11A A new road forming part of Work No. 11 commencing by a junction with Whitefield Drive at a point 55 metres south-west of the junction of Kirkby Row with that road and terminating by a junction with Whitefield Drive at a point 35 metres south-west of the said junction of Kirkby Row with that road.

8. In the execution of the Executive's works or the Board's works (as the case may be) or any part thereof, the appropriate authority may deviate from the lines or situations thereof shown on the deposited plans to the extent of the limits of deviation and may deviate vertically from the levels shown on the deposited sections to any extent not exceeding 3 metres upwards or, in the case of the parts of the railways (Works Nos. 3A and 3B) between points 190 metres and 370 metres from the commencement of each of those works, not exceeding 5 metres upwards, and in any case to such extent downwards as may be found necessary or convenient.

PART II
—cont.

Power to
deviate.

9. The following provisions shall apply to the construction of the underground railways:—

General
provisions as
to construc-
tion of
underground
railways.

- (1) The underground railways shall be constructed in separate tunnels for up and down traffic except at cross-overs, sidings and junctions where they may be constructed in single tunnels of enlarged dimensions:
- (2) The underground railways shall be approached by means of stairs, inclines, subways, electric or other lifts or escalators or moving pavements:
- (3) The tunnels of the underground railways (including the tunnels for stations forming part of those railways) and every permanent shaft shall be lined throughout with iron or other sufficient metal plates or with concrete or other suitable material:

Provided that in rock the tunnels and shafts may be unlined or unlined and coated with a protective skin of concrete or cement mortar applied by pressure-operated spray:

- (4) The station tunnels of the underground railways shall have an internal height or diameter not exceeding 9 metres; the cross-over, siding and junction tunnels shall have an internal height or diameter not exceeding 12 metres; the tunnels between the stations (except at cross-overs and junctions or where necessary for adjustment at curves or for other constructional purposes) shall have an internal height or diameter not exceeding 5.5 metres; the tunnels and shafts for stairs, inclines, subways, escalators and moving pavements shall have an internal height or diameter not exceeding 10 metres; and other shafts shall have an internal width or diameter not exceeding 12 metres:

PART II
—cont.

- (5) Any space between the lining of the tunnels (including station, cross-over, siding and junction tunnels) or shafts and the surrounding soil shall be properly filled up with suitable grouting material placed therein under pressure.

Plans, etc., to be approved by Secretary of State before underground railways commenced.

10. The appropriate authority shall as regards the underground railways from time to time submit for the approval of the Secretary of State plans, sections and other details of their proposals with respect to—

- (a) permanent-way, tunnels, platforms, stairs, lifts, escalators and other communications;
- (b) rolling stock;
- (c) lighting; and
- (d) ventilation;

and any rolling stock and work included in the said proposals shall be constructed and maintained only in accordance with plans, sections and other details as approved by the Secretary of State.

Provisions as to use of electrical power.

11. The following provisions shall apply to the use of electrical power for the purposes of Works Nos. 1 to 7:—

- (1) The appropriate authority shall employ either insulated returns or uninsulated metallic returns of low resistance:
- (2) The appropriate authority shall take all reasonable precautions in constructing, placing and maintaining their electric lines and circuits and other works of all descriptions, and also in working the said works, so as not injuriously to affect by fusion or electrolytic action any gas, water or hydraulic power pipes or other metallic pipes, structures or substances, or to interfere with the working of any wire, line or apparatus from time to time used for the purpose of transmitting electrical power or of telegraphic, telephonic or electric signalling communication or the currents in such wire, line or apparatus:
- (3) The electrical power shall be used only in accordance with the regulations hereinafter referred to, and in such regulations provision shall be made for preventing fusion or injurious electrolytic action of or on gas, water or hydraulic power pipes or other metallic pipes, structures or substances and for minimising so far as is reasonably practicable injurious interference with the electric wires,

lines and apparatus of other persons, and the currents therein, whether such lines do or do not use the earth as a return:

PART II
—cont.

- (4) The appropriate authority shall be deemed to take all reasonable and proper precautions against interference with the working of any wire, line or apparatus if and so long as they adopt and employ, at the option of the appropriate authority, either such insulated returns, or such uninsulated metallic returns of low resistance and such other means of preventing injurious interference with the electric wires, lines and apparatus of other persons and the currents therein, as may be prescribed by the regulations; and in prescribing such means the Secretary of State shall have regard to the expense involved in relation to the protection afforded:
- (5) The provisions of this section shall not operate to give any right of action in respect of injurious interference with any electric wire, line or apparatus, or the currents therein, unless in the construction, erection, maintaining and working of such wire, line and apparatus all reasonable and proper precautions, including the use of an insulated return, have been taken to minimise injurious interference therewith, and with the currents therein, by or from other electric currents:
- (6) If any difference arises between the appropriate authority and any other person with respect to anything in the foregoing provisions of this section, the difference shall, unless the parties otherwise agree, be determined by the Secretary of State or, at his option, by an arbitrator to be appointed by him, and the costs of such determination shall be in the discretion of the Secretary of State or of the arbitrator, as the case may be:
- (7) In this section “the regulations” means any regulations made by the Secretary of State which may for the time being be in force with respect to Works Nos. 1 to 7, which regulations the Secretary of State is hereby authorised to make:
- (8) In this section reference to an insulated return includes reference to a return by means of a combined neutral and earth cable which is covered by a sheath suitable for protection against corrosion and is approved for use below ground by the Secretary of State for Trade for the purpose of any regulations relating to the supply of electricity:
- (9) The foregoing provisions so far as they apply to, or in respect of, any telegraphic line belonging to, or used by, the Post Office, or to communication by means of, or

PART II
—cont.

currents in, any such line, shall have effect subject to the provisions of paragraphs (1) to (3) of section 38 (For protection of Post Office) of this Act.

Further works
and powers
of Board.

12. Subject to the provisions of this Act (and, in so far as the same are shown on the deposited plans and sections, in the lines or situations, and according to the levels, so shown) the Board may make and maintain the further works described in this section, with all necessary works and conveniences connected therewith, and may exercise the powers hereinafter mentioned:—

(1) In the metropolitan county of Merseyside, city of Liverpool—

(a) They may stop up and discontinue so much of the street known as Mildred Street numbered 221 on the deposited plans as lies between the points marked “ A ” and “ B ” thereon;

(b) They may stop up and discontinue so much of the street known as Bamber Street numbered 227 on the deposited plans as lies between the points marked “ C ” and “ D ” thereon;

(c) They may stop up and discontinue so much of the footpath between Mill Lane and Sturdee Road forming part of the lands numbered 285 on the deposited plans as lies within the limits of deviation and substitute therefor a new footpath between the points marked “ E ” and “ F ” thereon;

(d) They may stop up and discontinue so much of the streets known as Waldgrave Road and Sturdee Road numbered 287 and 288 respectively on the deposited plans as lies between the points marked “ G ” and “ H ” thereon and substitute therefor a footpath between the same points;

(e) They may stop up and discontinue the footpath leading eastwards from Sturdee Road forming part of the lands numbered 290 on the deposited plans between the points marked “ J ” and “ K ” thereon;

(f) They may stop up and discontinue so much of the footpath or footpaths at Thingwall Hall fields forming part of the lands numbered 452 and 453 on the deposited plans as lies within the limits of deviation;

(g) They may stop up and discontinue so much of the footpath at Thingwall Hall fields between Bowring Park Road and Thingwall Hall numbered 454 and 455 on the deposited plans as lies within the limits of deviation.

- (2) In the metropolitan county of Merseyside, district of Knowsley (formerly in the county palatine of Lancaster, urban district of Huyton-with-Roby)—

PART II
—cont.

They may stop up and discontinue so much of the footpath and street between Blacklow Brow and an unnamed street between the embankment of the Liverpool and Manchester Railway and St. Mary's Road numbered 63 and 65 on the deposited plans as lies between the points marked "A" and "B" thereon and substitute therefor a new footpath between the same points.

13.—(1) Subject to the provisions of this Act (and, in so far as the same are shown on the deposited plans and sections, in the lines or situations, and according to the levels, so shown) the Executive may make and maintain the further works described in this section, with all necessary works and conveniences connected therewith, and may exercise the powers hereinafter mentioned:—

In the metropolitan county of Merseyside, city of Liverpool—

(a) They may construct a footbridge over Utting Avenue and Townsend Avenue by means of a widening on the south-west side of the bridge carrying the Cheshire Lines Branch Railway over those streets;

(b) They may construct a footbridge over Walton Hall Avenue by means of a widening on the south-west side of the bridge carrying the Cheshire Lines Branch Railway over that street.

(2) The footbridges constructed in pursuance of the powers of this section shall be provided with good and sufficient fences.

14.—(1) Subject to the provisions of this Act, the appropriate authority may—

Power to
open surface
of streets.

(a) for the purpose of constructing the Executive's works or the Board's works (as the case may be) enter upon, open, break up and interfere with so much as is within the limits of deviation or the limits of land to be acquired of the streets referred to in column (1) of Schedule 1 to this Act and marked with the letter "x" in column (2) thereof, and so much of any bridleway or footpath as is within those limits;

(b) for the purpose of providing access to the Executive's works or the Board's works (as the case may be) make

PART II
—cont.

and maintain permanent openings in the carriageways and footways of so much as is within the limits of deviation of the streets referred to in column (1) of the said Schedule 1 and marked with the letter “y” in column (2) thereof.

(2) Not less than twenty-eight days before entering upon, opening, breaking up or interfering with the surface of any street to which subsection (1) (a) of this section applies the appropriate authority shall post notices stating their intention to do so in conspicuous positions at each end of the part of the street so affected.

Temporary
stoppage of
highways.

15.—(1) The appropriate authority during, and for the purpose of, the execution of the Executive’s works or the Board’s works (as the case may be), may temporarily stop up and interfere with the whole or any part of any street, bridleway or footpath within the limits of deviation or the limits of land to be acquired, and may for any reasonable time divert the traffic therefrom and prevent all persons other than those bona fide going to or from any land, house or building abutting on the said part of the street, bridleway or footpath from passing along and using the same.

(2) The appropriate authority shall provide reasonable access for foot passengers bona fide going to or from any such land, house or building.

Stopping up
streets and
footpaths
without
providing
substitute.

16.—(1) Where this Act authorises the stopping up of a street, bridleway or footpath, or portion thereof, without providing a substitute, the stopping up shall not take place (except as to so much of the street, bridleway or footpath, or portion thereof, authorised to be stopped up as is situated upon, or bounded on both sides by, property of which either of the appropriate authorities are in possession) without the consent of the owners, lessees and occupiers of the houses and lands abutting on both sides thereof.

(2) After such stopping up all rights of way over or along the street, bridleway or footpath, or portion thereof, authorised to be stopped up shall be extinguished and the appropriate authority may, subject to the provisions of the Act of 1845, as incorporated with this Act, with respect to mines lying under or near the railway, appropriate without making any payment therefor and use for the purposes of their undertaking the site of the street, bridleway or footpath, or portion thereof, so stopped up.

(3) Any person who suffers loss by the extinguishment by the appropriate authority of any private right under this section shall be entitled to be paid by the appropriate authority compensation to be determined in case of dispute by the tribunal.

17.—(1) Where this Act authorises the making of a new street, bridleway or footpath, either by way of diversion of, or in substitution for, an existing street, bridleway or footpath, and the stopping up of the existing street, bridleway or footpath or portion thereof, the stopping up of the existing street, bridleway or footpath shall not, in either case, take place until the highway authority are satisfied that the new street, bridleway or footpath has been completed in accordance with their reasonable requirements and is open for public use or, in the case of any difference between the appropriate authority and the highway authority as to whether the said requirements have been complied with or as to their reasonableness, until the matter in dispute has been referred to and determined by the Secretary of State and he has certified that the new street, bridleway or footpath has been completed in accordance with his determination.

PART II
—cont.

Stopping
up streets and
footpaths
in case of
diversion or
substitution.

(2) Before applying to the Secretary of State for his determination, the appropriate authority shall give to the highway authority seven days' notice in writing of their intention to apply for the same.

(3) As from the completion to the satisfaction of the highway authority of the new street, bridleway or footpath, or as from the date of the said certificate (as the case may be), all rights of way over or along the existing street, bridleway or footpath, or portion thereof, authorised to be diverted or stopped up shall be extinguished, and the appropriate authority may, subject to the provisions of the Act of 1845, as incorporated with this Act, with respect to mines lying under or near the railway, appropriate without making any payment therefor and use for the purposes of their undertaking the site of the street, bridleway or footpath, or portion thereof, diverted or stopped up so far as the same is bounded on both sides by lands in the possession of the appropriate authority.

(4) Any person who suffers loss by the extinguishment by the appropriate authority of any private right under this section shall be entitled to be paid by the appropriate authority compensation to be determined in case of dispute by the tribunal.

18.—(1) Notwithstanding anything in section 46 of the Act of 1845, as incorporated with this Act, the appropriate authority shall not be liable to maintain the surface of any road or public highway under or over which the authorised works shall be constructed, or the immediate approaches thereto:

Provisions as
to repair of
streets,
footpaths,
etc.

Provided that nothing in this subsection shall relieve the Board from any liability to which they were subject immediately before the passing of this Act for the maintenance of any such road, highway or approaches.

PART II
—cont.

(2) Subject to the provisions of subsection (1) of this section, any street, bridleway or footpath, or portion thereof, made, diverted or altered under this Act (except the structure carrying any such street, bridleway or footpath over any railway of the Board, which structure shall, unless otherwise agreed, be maintained by, and at the expense of, the Board) shall, when completed as a public highway in accordance with section 17 (Stopping up streets and footpaths in case of diversion or substitution) or paragraph (7) of section 34 (As to highways, traffic, etc.) of this Act (as the case may be), unless otherwise agreed, be maintained by, and at the expense of, the appropriate authority for a period of twelve months from the completion thereof and, at the expiration of that period, shall be maintained by, and at the expense of, the persons liable to maintain streets, bridleways or footpaths of the same nature and in the same area as the street, bridleway or footpath, or portion thereof, so made, diverted or altered.

1968 c. 73.

(3) Sections 116 and 117 of the Transport Act 1968, relating to the responsibility for the maintenance of highway bridges over railways, shall apply to the Executive as if they were one of the boards mentioned in those sections.

Underpinning
of houses near
works.

19.—(1) The appropriate authority may, at their own expense, subject as hereinafter provided, underpin or otherwise strengthen any house or building within 30 metres of any of the authorised works, and for this purpose the following provisions shall have effect:—

- (a) At least fourteen days' notice shall (except in case of emergency) be given to the owner, lessee and occupier of the house or building intended to be so underpinned or otherwise strengthened:
- (b) Each such notice shall be served in manner prescribed by section 30 of the Act of 1965, as applied by this Act:
- (c) If any owner, lessee or occupier of any such house or building shall, within ten days after the giving of such notice, give a counter-notice in writing that he disputes the necessity of such underpinning or strengthening, the question of the necessity shall be settled by arbitration:
- (d) In any case in which any house or building shall have been underpinned or strengthened under the powers of this section the appropriate authority may, from time to time after the completion of such underpinning or strengthening, and during the execution of the authorised works in connection with which such underpinning or strengthening was done, or within five years after the opening for traffic of the authorised works, enter upon and survey such house or building and, after complying with the foregoing provisions of this section, do such further underpinning or strengthening as they may deem necessary or expedient:

- (e) The appropriate authority shall be liable to compensate the owner, lessee and occupier of every such house or building for any loss or damage which may result to them by reason of the exercise of the powers under and in accordance with this section, provided that the claim for compensation in respect of such loss or damage is notified in writing within six months from either the date upon which any such owner, lessee or occupier first discovers the loss or damage or the date by which he ought reasonably to have discovered it, whichever is the earlier:
- (f) Nothing in this section nor any dealing with any property in pursuance of this section shall relieve the appropriate authority from the liability to compensate under section 6 of the Act of 1845, as incorporated with this Act, or section 10 (2) of the Act of 1965, as applied by this Act, or under any other enactment, in respect of loss or damage arising from the execution of any works, other than works of underpinning or strengthening authorised by this section:
- (g) Every case of compensation to be ascertained under this section shall be ascertained under, and in accordance with, the provisions of Part I of the Land Compensation 1961 c. 33. Act 1961.

(2) Any person who wilfully obstructs any person acting in pursuance of the powers conferred by this section shall be liable on summary conviction to a fine not exceeding ten pounds.

20.—(1) The appropriate authority may use for the discharge of any water pumped or found by them during the construction of the authorised works any available stream or watercourse, or any sewer, drain or conduit of the North West Water Authority or a local authority (including the Wapping Tunnel in the city of Liverpool), and for that purpose may lay down, take up and alter conduits, pipes and other works and may make any convenient connections with any such stream, watercourse, sewer, drain or conduit within the limits of deviation: Use of sewers, etc., for removing water.

Provided that—

- (a) the appropriate authority shall not discharge any water into any sewer, drain or conduit vested in or under the control of the water authority or a local authority except with the consent of that authority and subject to such terms and conditions as they may reasonably impose; and
- (b) the appropriate authority shall not make any opening into any such sewer, drain or conduit save in accordance with plans reasonably approved by, and under the superintendence (if given) of, the authority in which the sewer, drain or conduit is then vested.

PART II
—cont.
1951 c. 64.

(2) Notwithstanding anything in section 11 (7) of the Rivers (Prevention of Pollution) Act 1951, the discharge of any water under the powers of this section into any stream as defined in that section shall be subject to the provisions of section 2 of that Act.

(3) The appropriate authority shall take all such steps as may reasonably be required to secure that any water discharged by them under the powers of this section shall be as free as may be reasonably practicable from any gravel, soil or other solid substance or matter in suspension.

(4) Any difference arising between the appropriate authority and the North West Water Authority or a local authority under this section shall be settled by arbitration.

Exercise of
powers with
respect to
authorised
works.

21.—(1) The Executive and the Board may enter into and carry into effect agreements with respect to the construction, maintenance, use and operation of any of the authorised works, or any part of any of those works, and any works required for the purposes thereof or in connection therewith by the Board or by the Executive, or by the Executive and the Board jointly, and any such agreement may make provision with respect to any other matters incidental or subsidiary thereto or consequential thereon, including the defraying of, or the making of contributions towards, costs incurred by either party to the agreement.

(2) Without prejudice to the generality of the foregoing subsection, any such agreement may provide for the exercise by the Board or by the Executive, or by the Executive and the Board jointly, of all or any of the powers of the Executive or the Board (as the case may be) with respect to any of the authorised works and any works required for the purposes thereof or in connection therewith.

(3) (a) Subject to any agreement under subsection (1) of this section, where the Board or the Executive desire that any of the authorised works, or any part of any of those works, or any works required for the purposes thereof or in connection therewith, being works required for the development of the Merseyside Metropolitan Railway which the other of them is, in accordance with any such agreement or otherwise, authorised to construct or maintain, should be constructed or maintained, they may, by notice in writing to the other of them, request that such works as may be specified in the notice be so constructed or maintained by and at the cost of the authority by whom such notice is served.

(b) If within twenty-one months from the service of a notice on the Executive or the Board under paragraph (a) of this subsection, or such other period as may be agreed between the Board and the Executive, the authority upon whom such notice has been served shall not have commenced the construction or

PART II
—cont.

maintenance of the works in accordance with the notice, or such other works as may be so agreed, or if thereafter that authority, having commenced the construction or maintenance of such works, do not proceed with all reasonable dispatch in carrying out and completing the same, the authority by whom the notice under paragraph (a) of this subsection has been served may, after giving to the other not less than three months' notice of their intention to do so, proceed with the construction or maintenance (as the case may be) of such works or any of them and may, for that purpose, exercise all or any of the powers of the Executive or the Board (as the case may be) with respect to those works.

(c) Any difference arising between the Executive and the Board under this subsection (other than a difference as to the meaning or construction of this subsection) shall be settled by arbitration.

(4) The exercise by the Board or by the Executive, or by the Executive and the Board jointly, under this section of any powers of the other of them with respect to the authorised works, or any part of any of those works, or any works required for the purposes thereof or in connection therewith, shall be subject to the same provisions in relation to those powers as would apply if those powers were exercised by the Executive or the Board (as the case may be) alone, and accordingly those provisions, with any necessary modifications, shall apply to the exercise of such powers by the Board or the Executive, or by the Executive and the Board jointly.

(5) The Executive and the Board may enter into, and carry into effect, agreements for the transfer to, and vesting in, the Board or the Executive, or the Executive and the Board jointly, of any of the authorised works or any part of any of those works, or any works required for the purposes thereof or in connection therewith, together with the rights and obligations of the Executive or the Board (as the case may be) in relation thereto.

(6) This section shall have effect without prejudice to the provisions of the Transport Act 1968 for the making of payments 1968 c. 73. by the Executive to the Board in respect of railway passenger services provided by the Board and for entering into agreements between the Executive and the Board for the provision of railway passenger services by the Board.

PART III

LANDS

22.—(1) Subject to the provisions of this Act—

(a) the Board may enter upon, take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as they may require for

Power to
acquire lands.

PART III
—cont.

the purposes of the Board's works or for any purpose connected with, or ancillary to, their undertaking; and

- (b) the Executive may enter upon, take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as they may require for the purposes of the Executive's works or for any purpose connected with, or ancillary to, their undertaking.

(2) Without prejudice to the generality of the powers conferred upon the Board and the Executive by subsection (1) of this section—

- (a) the Board may, subject to the provisions of this Act, enter upon, take and use for each of the purposes specified in column (1) of Part I of Schedule 2 to this Act all or any of the lands referred to in relation to that purpose in columns (2) and (3) of that Part of that Schedule; and
- (b) the Executive may, subject to the provisions of this Act, enter upon, take and use for each of the purposes specified in column (1) of Part II of that Schedule all or any of the lands referred to in relation to that purpose in columns (2) and (3) of that Part of that Schedule.

(3) Subject to the provisions of this Act, the appropriate authority may enter upon, use and appropriate so much of the subsoil and under-surface of any public street, road, footway or place delineated on the deposited plans and described in the deposited book of reference as shall be necessary for the purposes of the Executive's works or the Board's works (as the case may be) without being required to purchase the same or any easement therein or thereunder or to make any payment therefor.

Correction of errors in deposited plans and book of reference.

23.—(1) If the deposited plans or the deposited book of reference are inaccurate in their description of any land, or in their statement or description of the ownership or occupation of any land, the appropriate authority after giving not less than ten days' notice to the owner, lessee and occupier of the land in question may apply to two justices having jurisdiction in the place where the land is situated for the correction thereof.

(2) If on any such application it appears to the justices that the misstatement or wrong description arose from mistake or inadvertence, the justices shall certify the fact accordingly and shall in their certificate state in what respect any matter is misstated or wrongly described.

(3) The certificate shall be deposited in the office of the Clerk of the Parliaments, and a copy thereof in the Private Bill Office, House of Commons, and with the proper officer of the Merseyside County Council and thereupon the deposited plans and the

deposited book of reference shall be deemed to be corrected according to the certificate, and it shall be lawful for the appropriate authority to take the land or an easement therein (as the case may be) and execute the works in accordance with the certificate.

PART III
—cont.

(4) A person with whom a copy of the certificate is deposited under this section shall keep it with the other documents to which it relates.

(5) In this section “proper officer” has the same meaning as in the Local Government Act 1972.

1972 c. 70.

24.—(1) Where a copy of this section is endorsed on, or annexed to, a notice to treat served under the Act of 1965, as applied by this Act, the following provisions of this section shall apply to the land subject to the notice instead of section 8 (1) of that Act. Acquisition of part only of certain properties.

(2) Where the land subject to the notice is part only of a house, building or factory, or part only of land consisting of a house, together with any park or garden belonging thereto, then, if the person on whom the notice is served, within twenty-one days after the day on which the notice is served on him, serves on the appropriate authority a counter-notice objecting to the sale of the part and stating that he is willing and able to sell the whole (hereinafter in this section referred to as “the land subject to the counter-notice”), the question whether he shall be required to sell the part shall, unless the appropriate authority agree to take the land subject to the counter-notice, be referred to the tribunal.

(3) If the said person does not serve such a counter-notice as aforesaid within twenty-one days after the day on which the notice to treat is served on him, or if on such a reference to the tribunal the tribunal determine that the part subject to the notice to treat can be taken without material detriment to the remainder of the land subject to the counter-notice or, in the case of part of land consisting of a house, together with a park or garden belonging thereto, without material detriment to the remainder of the land subject to the counter-notice and without seriously affecting the amenity and convenience of the house, the said person shall be required to sell the part.

(4) If on such a reference to the tribunal the tribunal determine that part only of the land subject to the notice to treat can be taken without material detriment to the remainder of the land subject to the counter-notice or, as the case may be, without material detriment to the remainder of the land subject to the counter-notice and without seriously affecting the amenity and convenience of the house, the notice to treat shall be deemed to be a notice to treat for that part.

PART III
—cont.

(5) If on such a reference to the tribunal the tribunal determine that the land subject to the notice to treat cannot be taken without material detriment to the remainder of the land subject to the counter-notice but that the material detriment is confined to a part of the land subject to the counter-notice, the notice to treat shall be deemed to be a notice to treat for the land to which the material detriment is confined in addition to the land already subject to the notice, whether or not the additional land is land which the appropriate authority are authorised to acquire compulsorily under this Act.

(6) If the appropriate authority agree to take the land subject to the counter-notice, or if the tribunal determine that—

- (a) none of the land subject to the notice to treat can be taken without material detriment to the remainder of the land subject to the counter-notice or, as the case may be, without material detriment to the remainder of the land subject to the counter-notice and without seriously affecting the amenity and convenience of the house; and
- (b) the material detriment is not confined to a part of the land subject to the counter-notice;

the notice to treat shall be deemed to be a notice to treat for the land subject to the counter-notice, whether or not the whole of that land is land which the appropriate authority are authorised to acquire compulsorily under this Act.

(7) In any case where, by virtue of a determination by the tribunal under subsection (4), (5) or (6) of this section, a notice to treat is deemed to be a notice to treat for part of the land specified in the notice or for more land than is specified in the notice, the appropriate authority may, within six weeks after the tribunal make their determination, withdraw the notice to treat, and if they do so shall pay to the said person compensation for any loss or expense occasioned to him by the giving and withdrawal of the notice, to be determined in default of agreement by the tribunal.

(8) Where a person is required under this section to sell part only of a house, building or factory, or of land consisting of a house, together with any park or garden belonging thereto, the appropriate authority shall pay him compensation for any loss sustained by him due to the severance of that part in addition to the value of his interest therein.

Disregard of
recent
improvements
and interests.

25. In determining a question with respect to compensation claimed in consequence of the compulsory acquisition of land under this Act, the tribunal shall not take into account any interest in land, or any enhancement of the value of any interest in land, by reason of any building erected, works executed or improvement or alteration made, whether on the land acquired

or on any other land with which the claimant is, or was at the time of erection, executing or making of the building, works, improvement or alteration, directly or indirectly concerned, if the tribunal are satisfied that the creation of the interest, the erection of the building, the execution of the works or the making of the improvement or alteration, as the case may be, was not reasonably necessary and was undertaken with a view to obtaining compensation or increased compensation.

PART III
—cont.

26.—(1) All private rights of way over any land that may be acquired compulsorily under this Act shall be extinguished on the acquisition of the land, whether compulsorily or by agreement, or on the entry on the land in pursuance of section 11 (1) of the Act of 1965, as applied by this Act, whichever is the sooner.

Extinction of
private rights
of way.

(2) Any person who suffers loss by the extinguishment of any right under this section shall be entitled to be paid by the appropriate authority compensation to be determined in case of dispute under and in accordance with Part I of the Land Compensation Act 1961.

1961 c. 33.

27.—(1) Notwithstanding anything in this Act, the appropriate authority may, for the purposes of constructing, altering, maintaining, protecting, renewing and using the Executive's works or the Board's works (as the case may be), enter upon, take and use so much of the subsoil and under-surface of, or may create and acquire such easements or rights as they may require in, under or over, any of the lands delineated on the deposited plans and described in the deposited book of reference, other than the lands specified in Schedule 3 to this Act, without acquiring, or being required to acquire, any greater interest in, under or over the same respectively, and may give notice to treat in respect of such entry, taking and using and the creation and acquisition of any such easements or rights, describing the nature thereof; and (subject to the foregoing provisions of this section and to the other provisions of this Act) the provisions of Part I of the Act of 1965, as applied by this Act, shall extend and apply in relation to the creation and acquisition of such easements or rights as if it were the purchase of lands within the meaning of those provisions.

Power to
acquire only
subsoil or
easements
in certain
cases.

(2) If, in any case where the appropriate authority enter upon, take and use the subsoil and under-surface of, or acquire an easement or right in or under, any of the lands aforesaid under subsection (1) of this section, they also require to take, use and pull down or open any cellar, basement, vault, arch or other construction forming part of any such lands, they may enter upon, take and use such cellar, basement, vault, arch or other construction for the purposes of the Executive's works or the Board's works (as the case may be), and (subject to the provisions of this Act) the provisions of the Act of 1965, as applied by this

PART III
—cont.

Act, shall extend and apply in relation to the purchase thereof as if such cellar, basement, vault, arch or other construction were lands within the meaning of those provisions:

Provided that section 24 (Acquisition of part only of certain properties) of this Act shall apply in respect of the acquisition by the appropriate authority under this subsection of any cellar, basement, vault, arch or other construction as if the same were a part of land to which that section applies.

(3) Nothing in this section shall prejudice or affect the provisions of subsection (3) of section 22 (Power to acquire lands) of this Act.

Only subsoil
or easements
to be
acquired
under certain
lands.

28.—(1) Notwithstanding the provisions of subsection (1) of section 22 (Power to acquire lands) of this Act, the appropriate authority shall not acquire compulsorily under the powers of this Part of this Act any interest in any part of the lands specified in Schedule 3 to this Act except as provided in subsection (2) of this section.

(2) The appropriate authority may, within the limits of deviation, enter upon, take and use so much of the subsoil and under-surface of the lands specified in the said Schedule 3 as they may require for the purpose of constructing, altering, maintaining, protecting, renewing and using the Executive's works or the Board's works (as the case may be) and any necessary works and conveniences connected therewith, or create and acquire such easements and rights in the subsoil and under-surface of the lands specified in the said Schedule 3 as they may require for the said purposes, without in either case being required to acquire any greater interest in, under or over the said lands, and may give notice to treat in respect of such entry, taking and using and the creation and acquisition of such easements or rights, describing the nature thereof; and (subject to the foregoing provisions of this section and to the other provisions of this Act) the provisions of Part I of the Act of 1965, as applied by this Act, shall extend and apply in relation to the creation and acquisition of such easements or rights as if it were the purchase of lands within the meaning of those provisions.

(3) For the purposes of this section the subsoil and under-surface of the lands specified in the said Schedule 3 shall not include any such subsoil or under-surface which is within 9.3 metres of the level of the surface of the ground or, in the case of a building on the said lands, the level of the surface of the ground adjoining the building, or, in the case of a river, dock, canal, navigation, watercourse or other water area, the level of the surface of the adjoining ground which is at all times above water level.

Grant of
easements by
persons under
disability.

29.—(1) Any person empowered by the Act of 1965, as applied by this Act, to sell and convey or release lands may, if he thinks

fit, subject to the provisions of the Act of 1965, grant to the appropriate authority any easement or right required for the purposes of this Act in or over the lands:

PART III
—cont.

Provided that nothing in this section shall be construed as empowering persons to grant any easement or right of water in which any other person has an interest, unless that other person concurs in the grant.

(2) The provisions of the Act of 1965 with respect to lands and rentcharges so far as they are applicable shall extend and apply to any such grant and to any such easement or right as aforesaid.

30. Nothing in this Part of this Act shall authorise the appropriate authority to enter upon, take or use (except by agreement) any cellar, basement or vault in or under any street connected with any building unless such cellar, basement or vault, or the building with which it is connected, is described in the deposited book of reference.

As to cellars
under streets
not
referenced.

31.—(1) The powers of the Executive and the Board for the compulsory acquisition of the lands and easements which they are authorised to acquire by this Part of this Act shall not be exercised after 31st December, 1980.

Period for
compulsory
purchase of
lands or
easements.

(2) The powers of the Executive and the Board for the compulsory acquisition of the said lands and easements shall, for the purposes of this section, be deemed to have been exercised if before 31st December, 1980, notice to treat has been served in respect of those lands and easements.

32. Where an interest in land is subject to a mortgage—

Compensation
in respect of
depreciation
in value of
interest in
land subject
to mortgage.

(a) any compensation which is payable under this Act in respect of the depreciation in value of that interest shall be calculated as if the interest were not subject to the mortgage;

(b) a claim for the payment of any such compensation may be made by any mortgagee of the interest under a mortgage made before the happening of the event giving rise to the compensation, but without prejudice to the making of a claim by any other person;

(c) a mortgagee shall not be entitled to claim any such compensation in respect of his interest as such; and

(d) any such compensation payable in respect of the interest subject to the mortgage shall be paid to the mortgagee or, where there is more than one mortgagee, to the first mortgagee, and shall in either case be applied by him as if it were proceeds of sale.

PART IV

PROTECTIVE PROVISIONS

For protection
of Board.

33. For the protection of the Board, the following provisions shall, unless otherwise agreed in writing between the Executive and the Board, apply and have effect:—

(1) In this section—

“ railway property ” means any railway of the Board, and any works connected therewith for the maintenance or operation of which the Board are responsible, and includes any lands held or used by the Board for the purposes of such railway or works;

“ the specified works ” means so much of the Executive’s works, and of any of the Board’s works constructed or to be constructed by the Executive in pursuance of section 21 (Exercise of powers with respect to authorised works) of this Act, as may be situated upon, across, under or over railway property or may in any way affect railway property;

“ construction ” includes reconstruction and for the purposes of paragraphs (8), (10) and (12) of this section includes maintenance and repair of the specified works;

“ the engineer ” means an engineer to be appointed by the Board;

“ plans ” includes sections, drawings, particulars and schedule of construction:

(2) The Executive shall not under the powers of Part III of this Act acquire compulsorily any property of the Board (not being property specified in Schedule 3 to this Act), but they may create and acquire such easements and rights as they may reasonably require for the purposes specified in section 27 (Power to acquire only subsoil or easements in certain cases) of this Act in any such property delineated on the deposited plans:

(3) The Executive shall, before commencing the construction of the specified works, submit to the Board such proper and sufficient plans thereof as may reasonably be required for the reasonable approval of the engineer and shall not commence the construction of the specified works until plans thereof have been approved in writing by the engineer or settled by arbitration:

Provided that, if within twenty-eight days after such plans have been submitted to the Board the engineer shall not have intimated his disapproval thereof and the grounds of his disapproval, he shall be deemed to have approved the plans as submitted:

PART IV
—cont.

- (4) If within twenty-eight days after such plans have been submitted to the Board the Board give notice to the Executive that the Board desire themselves to construct any part of the specified works which in the opinion of the engineer will or may affect the stability of railway property and the safe operation of the railways of the Board, then, if the Executive desire such part of the specified works to be constructed, the Board shall construct it with all reasonable dispatch on behalf of, and to the reasonable satisfaction of, the Executive in accordance with the plans approved or deemed to be approved or settled as aforesaid:
- (5) Upon signifying his approval or disapproval of the plans the engineer may specify any protective works, whether temporary or permanent, which in his opinion should be carried out before the commencement of the construction of the specified works to ensure the stability of railway property and the safe operation of the railways of the Board, and such protective works as may be reasonably necessary for those purposes shall be constructed by the Board with all reasonable dispatch, and the Executive shall not commence the construction of the specified works until the engineer shall have notified the Executive that the protective works have been completed:
- (6) The Executive shall give to the engineer not less than twenty-eight days' notice of their intention to commence the construction of any of the specified works and also, except in emergency (when they shall give such notice as may be reasonably practicable), of their intention to carry out any works for the repair or maintenance of the specified works in so far as such works of repair or maintenance affect or interfere with railway property:
- (7) The construction of the specified works shall, when commenced, be carried out with all reasonable dispatch in accordance with the plans approved or deemed to be approved or settled as aforesaid, and under the supervision (if given), and to the reasonable satisfaction, of the engineer, and in such manner as to cause as little damage to railway property as may be and as little interference as may be with the conduct of traffic on the railways of the Board and the use by passengers of railway property, and if any damage to railway property or any such interference shall be caused by the carrying out of the specified works, the Executive shall, notwithstanding any such approval as aforesaid, make good such damage and shall on demand pay to the

PART IV
—cont.

Board all reasonable expenses to which they may be put and compensation for any loss which they may sustain by reason of any such damage or interference:

Provided that nothing in this paragraph shall impose any liability on the Executive with respect to any damage, expense or loss which is attributable to the act, neglect or default of the Board or their servants, contractors or agents:

- (8) The Executive shall at all times afford reasonable facilities to the engineer for access to the specified works during their construction and shall supply him with all such information as he may reasonably require with regard to the specified works or the method of construction thereof:
- (9) The Board shall at all times afford reasonable facilities to the Executive and their agents for access to any works carried out by the Board under this section during their construction, and shall supply the Executive with such information as they may reasonably require with regard to such works or the method of construction thereof:
- (10) If any alterations or additions, either permanent or temporary, to railway property shall be reasonably necessary during the construction of the specified works, or during a period of twelve months after the completion thereof, in consequence of the construction of the specified works, such alterations and additions may be carried out by the Board after notice has been given to the Executive, and the Executive shall pay to the Board on demand the cost thereof including, in respect of permanent alterations and additions, a capitalised sum representing any increase in the costs which may be expected to be reasonably incurred by the Board in maintaining, working and, when necessary, renewing any such alterations or additions:

Provided that if the cost of maintaining, working or renewing railway property is reduced in consequence of any such alterations or additions, a capitalised sum representing such saving may be set off against any sum payable by the Executive to the Board under this section:

- (11) The Executive shall repay to the Board all costs, charges and expenses reasonably incurred by the Board—
 - (a) in constructing any part of the specified works on behalf of the Executive as provided by paragraph (4) of this section or in constructing any protective works

under the provisions of paragraph (5) of this section, including, in respect of any permanent protective works, a capitalised sum representing the cost which may be expected to be reasonably incurred by the Board in maintaining and renewing such works;

(b) in respect of the employment of any inspectors, signalmen, watchmen and other persons who it shall be reasonably necessary to appoint for inspecting, watching and lighting railway property and signalling railway traffic and for preventing, so far as may be reasonably practicable, interference, obstruction, danger or accident arising from the construction or failure of the specified works;

(c) in respect of any special traffic working resulting from any speed restrictions which may, in the opinion of the engineer, require to be imposed by reason or in consequence of the construction or failure of the specified works, or from the substitution or diversion of services which may be reasonably necessary for the same reason;

(d) in respect of any additional temporary lighting of railway property in the vicinity of the specified works, being lighting made reasonably necessary during, and by reason of, the construction or failure of the specified works;

(e) in respect of the supervision by the engineer of the construction of the specified works:

(12) The Executive shall be responsible for, and make good to the Board, all costs, charges, damages and expenses not otherwise provided for in this section which may be occasioned to, or reasonably incurred by, the Board—

(a) by reason of the construction of the specified works or the failure thereof; or

(b) by reason of any act or omission of the Executive, or of any persons in their employ, or of their contractors or others whilst engaged upon the construction of the specified works;

and the Executive shall indemnify the Board from and against all claims and demands arising out of, or in connection with, the construction of the specified works or any such failure, act or omission as aforesaid, and the fact that any act or thing may have been done by the Board on behalf of the Executive, or in accordance with plans approved by the engineer, or in accordance with any requirement of the engineer, or under his supervision, shall not (if it was not attributable to the act, neglect or default of the Board, or of any person in

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their employ, or of their contractors or agents) excuse the Executive from any liability under the provisions of this section:

Provided that the Board shall give to the Executive reasonable notice of any claim or demand as aforesaid, and no settlement or compromise thereof shall be made without the prior consent of the Executive:

- (13) Any difference arising between the Executive and the Board under this section (other than a difference as to the meaning or construction of this section) shall be settled by arbitration.

As to
highways,
traffic, etc.

34. For the protection of certain highway authorities the following provisions shall, unless otherwise agreed in writing between the appropriate authority and the highway authority concerned, apply and have effect:—

- (1) In this section “highway” means a highway vested in, or repairable or maintained by, the highway authority:
- (2) Wherever in this section provision is made with respect to the approval or consent of the highway authority that approval or consent shall be in writing and may be given subject to such reasonable terms and conditions as the highway authority may require, but shall not be unreasonably withheld:
- (3) The appropriate authority shall not, without the consent of the highway authority, construct any part of the Executive’s works or the Board’s works (as the case may be) which will be within 8 metres of the surface of any highway except in accordance with plans and sections submitted to, and approved by, the highway authority:

Provided that, if within twenty-eight days after such plans and sections have been submitted the highway authority have not approved or disapproved them, they shall be deemed to have approved the plans and sections as submitted:

- (4) In the construction of any part of the Executive’s works or the Board’s works (as the case may be) under a highway no part thereof shall, except with the consent of the highway authority, be so constructed as to interfere with the provision of proper means of drainage of the surface of the highway or be nearer than 0·8 metres to the surface of the highway:
- (5) Before commencing to construct any part of the Executive’s works or the Board’s works (as the case may be)

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which will involve interference with a highway, or the traffic in any highway, or before temporarily stopping up any highway, the appropriate authority shall consult the highway authority as to the time when such part shall be commenced, and as to the extent of the surface of the highway which it may be reasonably necessary for the appropriate authority to occupy, or the nature of the interference which may be caused to the said traffic in the construction of such part or (as the case may be) as to the time during which, and the extent to which, such highway shall be stopped up, and as to the conditions under which such part shall be constructed, or (as the case may be) such highway shall be stopped up, so as to reduce so far as possible inconvenience to the public and to ensure the safety of the public, and such part shall not be constructed and the surface of the highway shall not be occupied by the appropriate authority, or (as the case may be) such highway shall not be stopped up and the said interference with traffic shall not be caused by the appropriate authority, except at such time, to such extent, and in accordance with such conditions as may be agreed between the appropriate authority and the highway authority or determined by arbitration:

- (6) At least fourteen days before commencing to make any borings or trial pits in any part of any highway the appropriate authority shall serve notice in writing on the highway authority of their intention to commence the same, and such notice shall describe the place or places at which the borings or trial pits are intended to be made, and, if within fourteen days after the receipt of such notice any objection is made by the highway authority, the matter shall (unless otherwise agreed) be determined by arbitration before the making of any boring or trial pit is commenced, but if no such objection is made the appropriate authority may proceed with the making of the borings or trial pits:
- (7) Such of the new roads (Works Nos. 9A, 10A, 10B and 11A) as are intended to become public highways shall be completed in accordance with the reasonable requirements of the local highway authority or, in case of difference between the appropriate authority and the highway authority as to whether the said requirements have been complied with or as to their reasonableness, in accordance with the determination of the Secretary of State upon any such difference:
- (8) Except with the consent of the highway authority the Board shall not open or make any permanent openings

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or any ventilators, air-shafts or other similar openings in, or erect or construct any structure or erection above, the surface of the carriageway or footway of any highway, and in constructing, maintaining and operating the said ventilators, air-shafts or other similar openings the Board shall take all steps which are reasonably practicable to avoid causing a nuisance:

- (9) The appropriate authority shall secure that so much of the Executive's works or the Board's works (as the case may be) as is constructed under, or so as to affect, any highway shall be so designed, constructed and maintained as to carry the appropriate loading recommended for highway bridges, at the time of construction of such works, by the Secretary of State, and the appropriate authority shall indemnify the highway authority against, and make good to the highway authority, all expenses which the highway authority may reasonably incur or be put to in the maintenance or repair of any highway, or any tunnels, sewers, drains or apparatus therein, by reason of any non-compliance by the appropriate authority with the provisions of this paragraph:
- (10) It shall be lawful for the proper officer of the highway authority at all reasonable times, on giving to the appropriate authority such notice as may in the circumstances be reasonable, to enter upon and inspect any part of the Executive's works or the Board's works (as the case may be) which is in or under any highway, or which may affect any highway or any property or work of the highway authority, during the execution thereof, and the appropriate authority shall give to such officer all reasonable facilities for such inspection and, if he shall be of opinion that the construction of such works is attended with danger to any highway or to any sanitary convenience, refuge, sewer, drain, lamp column, traffic sign, bollard, bin for refuse or road materials or apparatus connected therewith, or any property or work belonging to, or under the jurisdiction or control of, the highway authority on or under any highway, the appropriate authority shall adopt such measures and precautions as may be reasonably necessary for the purpose of preventing any damage or injury thereto:
- (11) The appropriate authority shall not alter, disturb or in any way interfere with any sanitary convenience, refuge, sewer, drain, lamp column, traffic sign, bollard, bin for refuse or road materials or apparatus connected therewith, or any property or work belonging to, or under the

jurisdiction or control of, the highway authority on or under any highway or repairable by them or the access thereto, without the consent of the highway authority, and any alteration, diversion, replacement or reconstruction of any such sanitary convenience, refuge, sewer, drain, lamp column, traffic sign, bollard, bin for refuse or road materials or apparatus connected therewith or any property or work as aforesaid which may be necessary shall be made by the highway authority or the appropriate authority as the highway authority shall think fit, and any costs, charges and expenses reasonably incurred by the highway authority in so doing shall be repaid to the highway authority by the appropriate authority:

- (12) The appropriate authority shall not remove any soil or material from any highway except such as must be excavated in the carrying out of the Executive's works or the Board's works, as the case may be:
- (13) If the highway authority, after giving to the appropriate authority not less than twenty-eight days' notice (or in case of emergency such other notice as is reasonably practicable) of their intention to do so, incur any extra expense in the signposting of traffic diversions or the taking of other measures in relation thereto, or in the repair of any highway by reason of the diversion thereto of traffic from a road of a higher classification in consequence of the construction of the Executive's works or the Board's works (as the case may be), the appropriate authority shall repay the amount of the expense reasonably so incurred to the highway authority:
- (14) (a) The appropriate authority shall not, except with the consent of the highway authority, deposit any soil, subsoil or materials or stand any vehicle or plant on or over any highway so as to obstruct or render less safe the use of such highway by any person or, except with the like consent, deposit any soil, subsoil or materials on any such highway except within a hoarding;
(b) All costs, charges and expenses reasonably incurred by the highway authority in removing any soil, subsoil or materials deposited on any highway in contravention of this paragraph shall be repaid to the highway authority by the appropriate authority:
- (15) The appropriate authority shall, if reasonably so required by the highway authority, provide and maintain to the

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reasonable satisfaction of the highway authority, during such time as the appropriate authority may occupy any part of a highway for the purpose of the construction of any part of the Executive's works or the Board's works (as the case may be), temporary bridges and temporary ramps for vehicular traffic or pedestrian traffic, or both, over any part of the Executive's works or the Board's works (as the case may be) or in such other position as may be necessary to prevent undue interference with the flow of traffic in any highway:

- (16) Where any part of any highway shall have been temporarily broken up or disturbed by the appropriate authority, the appropriate authority shall make good the subsoil, foundations and surface of such part of the highway to the reasonable satisfaction of the highway authority and maintain the same to the reasonable satisfaction of the highway authority for such time as may be reasonably required for the permanent reinstatement of the highway:

Provided that the reinstatement of such part of the highway shall in the first instance be of a temporary nature only and the permanent reinstatement thereof shall be carried out by the highway authority as soon as reasonably practicable after the completion of the temporary reinstatement, and the costs, charges and expenses reasonably incurred by the highway authority in so doing shall be repaid by the appropriate authority to the highway authority:

- (17) It shall not be lawful for the appropriate authority to place any hoardings on any part of any highway except for such period and in such manner as may be reasonably necessary, and the provisions of sections 147 and 148 of the Highways Act 1959 and of section 320 of the Liverpool Corporation Act 1921 shall apply to any hoarding erected on any part of any highway, and, for the purposes of the said section 147, any such hoarding shall be deemed to have been erected in compliance with subsection (1) of that section:

- (18) The appropriate authority shall make compensation to the highway authority for any subsidence of, or damage to, any highway or any sanitary convenience, refuge, sewer, drain, lamp column, traffic sign, bollard, bin for refuse or road materials or apparatus connected therewith or any property or work belonging to, or under the jurisdiction or control of, the highway authority on or under any highway or maintainable by them which may be caused by, or in consequence of, any act or default of the appropriate authority, their contractors, servants or

1959 c. 25.

1921 c. lxxiv.

agents and whether such damage or subsidence shall happen during the construction of the Executive's works or the Board's works (as the case may be) or at any time thereafter:

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- (19) The appropriate authority shall where possible so design their works that the entrances to, and exits from, the underground railways may be used also as pedestrian subways under adjoining highways and shall consult the highway authority on the design of any subways and stations:
- (20) The highway authority may require that the Executive's works or the Board's works (as the case may be), so far as they involve any serious interference with the movement of traffic in any highway, shall be carried on, so far as reasonably practicable, continuously by day and night, and the appropriate authority shall take all such steps as may be reasonably necessary to reduce so far as possible the period of such interference:
- (21) Any difference arising between the appropriate authority and the highway authority under this section (other than a difference as to the meaning or construction of this section) shall be determined by arbitration.

35. For the protection of certain local authorities the following provisions shall, unless otherwise agreed in writing between the appropriate authority and the local authority concerned, apply and have effect:—

For further
protection of
local
authorities.

- (1) In this section—

“ the local authority ” means the Merseyside County Council, the Knowsley District Council, the Liverpool City Council and the Sefton District Council, or any of them, as the case may be;

“ highway ” means a highway vested in, or repairable or maintained by, the local authority;

“ plans ” means plans, sections and particulars;

“ specified works ” means any authorised work in the area of the local authority:

- (2) Wherever in this section provision is made with respect to the approval or consent of the local authority, that approval or consent shall be in writing and may be given subject to such reasonable terms and conditions as the local authority may require, but shall not be unreasonably withheld:

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—cont.

1971 c. 78.

- (3) Before commencing to construct any part of the specified works the appropriate authority shall consult the local authority about—

(a) the programme for the construction of those works so as to secure, so far as may be reasonably practicable, that the duration of any disturbance occasioned by, or in connection with, such construction shall be reduced to a minimum;

(b) the lands to be occupied and used as temporary working sites for contractors' plant and storage for the purpose of such construction, the period for which and the manner in which each such site shall be used and the steps to be taken by the appropriate authority in order to mitigate injury to amenity:

- (4) Without prejudice to anything in the Town and Country Planning Act 1971, the appropriate authority shall submit to the local authority for their approval particulars of the routes in their area to be used by vehicles, machinery and plant, passing to or from any part of the specified works under construction, outside the limits of deviation, and of the proposed manner and method of disposing of any spoil or waste material resulting from the carrying out of any operation in connection with the specified works, and no such spoil or waste material shall be disposed of on land not held by the Board or the Executive otherwise than in such manner and method as shall be described in particulars approved by the local authority as aforesaid or, if such approval be withheld, as may be determined by the Secretary of State:

Provided that, if within twenty-eight days after the submission to them of particulars under this paragraph the local authority do not signify to the appropriate authority their approval or disapproval thereof, they shall be deemed to have approved thereof:

- (5) The entrances and exits to and from any subway, booking hall or station constructed as part of the Executive's works or the Board's works (as the case may be), including any permanent openings in any highway, shall be so designed and of such extent as to secure the least practicable inconvenience to public traffic in the adjoining highways, and, before the Executive or the Board commence to construct such entrances or exits within the area of a local authority, plans thereof shall be submitted to the local authority for their reasonable approval:

Provided that, if the local authority do not within twenty-eight days from the submission to them of any such plans notify their approval or disapproval thereof, they shall be deemed to have approved the plans as submitted:

- (6) Within three months after the completion of any of the specified works, or such longer period as the local authority may agree, the appropriate authority shall remove, or to the reasonable satisfaction of the local authority demolish or otherwise dispose of, all temporary buildings and structures erected at, above or immediately below the level of the surface of the ground for the purposes of, or in connection with, the construction of that work, and shall remove all surplus materials, plant, machinery and appliances provided in connection therewith, and shall, so far as is reasonably practicable, to the like satisfaction restore and make good the surface of the ground on which any temporary buildings and structures or any surplus materials, plant, machinery and appliances as aforesaid have been placed or which may have been occupied for the purpose of, or in connection with, the construction of that work:
- (7) So soon as reasonably practicable after the completion of any part of the specified works the appropriate authority shall furnish the local authority with a plan and section showing the position and level of that work as constructed:
- (8) (a) The appropriate authority shall carefully preserve and remove all objects of geological or antiquarian interest discovered by them in the construction of the Executive's works or the Board's works (as the case may be) and, subject to the rights of the Crown and except so far as the same may be proved to be the property of any other person, any such objects discovered within the area of the local authority shall be deposited with the local authority as the property of the local authority;
(b) The appropriate authority shall afford to the local authority reasonable facilities to inspect any objects so discovered in the construction of the specified works:
- (9) The appropriate authority shall be responsible for, and make good to the local authority, costs, charges, damages and expenses not otherwise provided for in this Act which may be occasioned to, or reasonably incurred by, the local authority—
 - (i) by reason of the construction of the Executive's works or the Board's works (as the case may be) or the failure thereof; or

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(ii) by reason of any act or omission of the appropriate authority or of any person in their employ, or of their contractors or others whilst engaged upon the construction of those works;

and the appropriate authority shall indemnify the local authority from claims and demands arising out of, or in connection with, the construction of the Executive's works or the Board's works (as the case may be) or any such failure, act or omission as aforesaid, or any subsidence caused thereby, and the fact that any act or thing may have been done in accordance with plans approved by the local authority, or in accordance with any requirement of the local authority, or under their supervision, shall not (if it was not attributable to the act, neglect or default of the local authority or of any person in their employ or of their contractors or agents) excuse the appropriate authority from any liability under the provisions of this section:

Provided that the local authority shall give to the appropriate authority reasonable notice of any claim or demand as aforesaid, and no settlement or compromise thereof shall be made without the prior consent of the appropriate authority:

- (10) Any difference arising between the appropriate authority and the local authority under this section (other than a difference as to the meaning or construction of this section) shall be determined by arbitration.

For protection
of public
sewers.

36. For the protection of certain sewerage authorities the following provisions shall, unless otherwise agreed in writing between the appropriate authority and the sewerage authority concerned, apply and have effect:—

- (1) In this section—

1936 c. 49.

“public sewer” has the same meaning as in the Public Health Act 1936;

1973 c. 37.

“sewerage authority” means the North West Water Authority and any authority which is a relevant authority for the purposes of section 15 of the Water Act 1973;

“new, altered or substituted works” includes any works required for the protection of any public sewer of the sewerage authority;

“specified works” means any part of the Executive's works or the Board's works (as the case may be) which will or may be situated within 15 metres measured in any direction of any public sewer vested in a sewerage authority:

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- (2) Wherever in this section provision is made with respect to the approval or consent of the sewerage authority such approval shall be in writing, but shall not be unreasonably withheld:
- (3) The appropriate authority shall not commence the construction of the specified works until they have given to the sewerage authority not less than twenty-eight days' notice in writing of their intention to commence the same together with plans as described in paragraph (9) of this section (in this section referred to as "the said plans") for their reasonable approval and until the sewerage authority have signified their approval of the said plans:
- Provided that, if within twenty-eight days after the submission of the said plans the sewerage authority have not approved or disapproved them, they shall be deemed to have approved the said plans as submitted:
- (4) The appropriate authority shall comply with, and conform to, all reasonable orders, directions and regulations of the sewerage authority in the construction of the specified works and shall provide new, altered or substituted works in such manner as the sewerage authority shall reasonably require for the protection of, and for preventing injury or impediment to, any existing public sewer of the sewerage authority by reason of the specified works, and shall indemnify the sewerage authority against all expenses occasioned thereby:
- (5) All new, altered or substituted works shall, where so required by the sewerage authority, be done by the sewerage authority, or under the direction, superintendence and control of an officer of the sewerage authority duly appointed for the purpose at the cost of the appropriate authority, and all costs, charges and expenses reasonably incurred by the sewerage authority by reason of such works, whether in the execution thereof, or in the preparation or examination of plans or designs, or in such direction, superintendence or control as aforesaid, or otherwise, shall be paid to the sewerage authority by the appropriate authority on demand:
- (6) When any new, altered or substituted works shall be completed by, or at the cost of, the appropriate authority under the provisions of this section, the same shall thereafter be as fully and completely under the direction, jurisdiction and control of the sewerage authority as any sewers or works now or hereafter may be:

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- (7) The sewerage authority may require the appropriate authority in constructing the specified works to make any reasonable deviation within the limits of deviation from the line or levels shown upon the said plans for the purpose of avoiding injury or risk of injury to their public sewers and the appropriate authority shall in constructing such works deviate accordingly:
- (8) It shall not be lawful for the appropriate authority, without the consent of the sewerage authority, in the exercise of the powers of section 11 (3) of the Act of 1965, as applied by this Act, to make any trial holes so as to interfere with any public sewer:
- (9) The plans to be submitted to the sewerage authority for the purposes of this section shall be detailed plans, drawings, sections and specifications which shall describe the exact position and manner in which, and the level at which, the specified works are to be constructed and shall accurately describe the position of all public sewers of the sewerage authority within the limits of deviation (for which purpose the sewerage authority shall allow the appropriate authority access to plans in their possession and to any of their sewers in order to enable the appropriate authority to obtain reliable information) and shall comprise detailed drawings of every alteration which the appropriate authority may propose to make in any such sewer:
- (10) The North West Water Authority may require such modifications to be made in the said plans as may be reasonably necessary to secure their main drainage system against interference or risk of damage and to provide and secure a proper and convenient means of access to the said sewers:
- (11) The appropriate authority shall be liable to make good, or, if the sewerage authority so decide, to bear any expense reasonably incurred by the sewerage authority in making good, all injury or damage caused by, or resulting from, the construction of the specified works to any sewers, drains or works vested in the sewerage authority, and the sewerage authority may recover any expense so incurred by them from the appropriate authority in any court of competent jurisdiction:
- (12) If the appropriate authority in the construction of the specified works or any new, altered or substituted works provided in accordance with this section, damage or,

without the consent of the sewerage authority, alter or in any way interfere with any existing public sewer of the sewerage authority, the appropriate authority shall—

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(a) pay to the sewerage authority any additional expense which may be reasonably incurred by the sewerage authority in the maintenance, management or renewal of any new, altered or substituted sewer which may be necessary in consequence of the said construction; and

(b) give to the sewerage authority full, free and uninterrupted access at all times to any such new, altered or substituted sewer and every reasonable facility for the inspection, maintenance, alteration and repair thereof:

- (13) It shall be lawful for the proper officer of the sewerage authority at any reasonable time, on giving to the appropriate authority such notice as may in the circumstances be reasonable, to enter upon and inspect the specified works or any other works constructed under the powers of this section:
- (14) The approval by the sewerage authority of any plans, or the superintendence by them of any work, under the provisions of this section shall not exonerate the appropriate authority from any liability, or affect any claim for damages, under this section or otherwise:
- (15) Any difference arising between the appropriate authority and the sewerage authority under this section (other than a difference as to the meaning or construction of this section) shall be determined by arbitration.

37. For the protection of certain statutory undertakers, the following provisions shall, unless otherwise agreed in writing between the appropriate authority and the undertakers concerned, apply and have effect:—

For protection of certain statutory undertakers.

- (1) In this section, unless the context otherwise requires—

“the undertakers” means the British Gas Corporation, the Central Electricity Generating Board, the Merseyside and North Wales Electricity Board and the North West Water Authority, or any of them, as the case may be;

“adequate alternative apparatus” means alternative apparatus adequate to enable the undertakers to fulfil their statutory functions in a manner not less efficient than previously;

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1882 c. 56.

“ apparatus ” means—

(a) electric lines and works (as respectively defined in the Electric Lighting Act 1882) belonging to, or maintained by, the Central Electricity Generating Board or the Merseyside and North Wales Electricity Board; or

(b) mains, pipes or other apparatus belonging to, or maintained by, the British Gas Corporation; or

(c) mains, pipes or other apparatus belonging to, or maintained by, the North West Water Authority for the purposes of water supply;

(not being apparatus in respect of which the relations between the appropriate authority and the undertakers are regulated by the provisions of Part II of the Public Utilities Street Works Act 1950), and includes any structure for the lodging therein of apparatus;

1950 c. 39.

“ in ” in a context referring to apparatus includes under, over, across, along or upon:

- (2) Notwithstanding anything in this Act or shown on the deposited plans, the appropriate authority shall not acquire any apparatus under the powers of Part III of this Act otherwise than by agreement:
- (3) If the appropriate authority in the exercise of the powers of Part III of this Act acquire any interest in any lands in which any apparatus is placed, that apparatus shall not be removed under this section, nor shall any right of the undertakers to use, maintain, repair, renew or inspect any apparatus in those lands be extinguished, until any necessary adequate alternative apparatus has been constructed and is in operation to the reasonable satisfaction of the undertakers:
- (4) If the appropriate authority, for the purpose of executing any of the Executive's works or the Board's works (as the case may be) in, on or under any lands acquired, held, appropriated or used under this Act, require the removal of any apparatus placed in those lands, and give to the undertakers not less than twenty-eight days' written notice of such requirement, together with a plan and section of the work proposed, and of the proposed position of the alternative apparatus to be provided or constructed so as to provide adequate alternative apparatus in lieu of the apparatus to be removed, or if, in consequence of the exercise of any of the powers of this Act, the undertakers shall reasonably require to remove any apparatus, the appropriate authority shall

afford to the undertakers the necessary facilities and rights for the construction of any necessary adequate alternative apparatus in other lands of the appropriate authority and thereafter for the maintenance, repair, renewal and inspection of such apparatus:

Provided that if the alternative apparatus, or any part thereof, is to be constructed elsewhere than in other lands of the appropriate authority and the appropriate authority are unable to afford such facilities and rights as aforesaid, the undertakers shall, on receipt of a written notice to that effect from the appropriate authority, forthwith use their best endeavours to obtain the necessary facilities and rights:

- (5) (a) Any alternative apparatus to be constructed in lands of the appropriate authority in pursuance of paragraph (4) of this section shall be constructed in such manner, and in such line or situation, as may be agreed between the undertakers and the appropriate authority or, in default of agreement, determined by arbitration;
- (b) The undertakers shall, after the manner of construction and the line and situation of any necessary alternative apparatus have been agreed or determined as aforesaid, and after the grant to the undertakers of any such facilities and rights as are referred to in paragraph (4) of this section, proceed with all reasonable dispatch to construct and bring into operation the alternative apparatus and thereafter to remove any apparatus required by the appropriate authority to be removed under the provisions of this section and, in default, the appropriate authority may remove the apparatus:
- (6) Notwithstanding anything in paragraph (5) of this section, if the appropriate authority give notice in writing to the undertakers that they desire themselves to execute any part of so much of the work necessary in connection with the construction of the alternative apparatus, or the removal of the apparatus required to be removed, as will be situate in any lands of the appropriate authority, such work, instead of being executed by the undertakers, shall be executed by the appropriate authority with all reasonable dispatch under the superintendence (if given) and to the reasonable satisfaction of the undertakers:

Provided that nothing in this paragraph shall authorise the appropriate authority to execute the actual placing, erection, installation, bedding, packing, removal, connection or disconnection of any apparatus

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or execute any filling around the apparatus (where the apparatus is laid in a trench) within 30 centimetres above the apparatus:

- (7) Where, in accordance with the provisions of this section, the appropriate authority afford to the undertakers facilities and rights for the construction, maintenance, repair, renewal and inspection in lands of the appropriate authority of alternative apparatus in substitution for apparatus to be removed as aforesaid, those facilities and rights shall be granted upon such terms and conditions as may be agreed between the appropriate authority and the undertakers or, in default of agreement, determined by arbitration:

Provided that—

(a) in determining such terms and conditions as aforesaid in respect of alternative apparatus to be constructed across or along the Executive's works or the Board's works (as the case may be) the arbitrator shall—

(i) give effect to all reasonable requirements of the appropriate authority for ensuring the safety and efficient operation of the Executive's works or the Board's works (as the case may be) and for securing any subsequent alterations or adaptations of the alternative apparatus which may be required to prevent interference with any such works; and

(ii) so far as it may be reasonable and practicable to do so in the circumstances of the case, give effect to any terms and conditions applicable to the apparatus (if any) constructed across or along the Executive's works or the Board's works (as the case may be) for which the alternative apparatus is to be substituted;

(b) if the facilities and rights to be afforded by the appropriate authority in respect of any alternative apparatus, and the terms and conditions subject to which the same are to be granted are, in the opinion of the arbitrator, more or less favourable on the whole to the undertakers than the facilities, rights, terms and conditions applying to the apparatus to be removed, the arbitrator shall make such provision for the payment of compensation to or by the appropriate authority by or to the undertakers in respect thereof as shall appear to him to be reasonable having regard to all the circumstances of the case:

- (8) (a) Not less than twenty-eight days before commencing to execute any of the Executive's works or the Board's works (as the case may be) which are near to, or will or may affect, any apparatus the removal of which has not been required by the appropriate authority under paragraph (4) of this section, the appropriate authority shall submit to the undertakers a plan, section and description of the works to be executed;
- (b) Such works shall be executed only in accordance with the plan, section and description submitted as aforesaid and in accordance with such reasonable requirements as may be made by the undertakers for the alteration or otherwise for the protection of the apparatus, or for securing access thereto, and the undertakers shall be entitled by their officer to watch and inspect the execution of such works:
- Provided that—
- (i) if the undertakers within fourteen days after the submission to them of any such plan, section and description shall, in consequence of the works proposed by the appropriate authority, reasonably require the removal of any apparatus and give written notice to the appropriate authority of such requirement, the foregoing provisions of this section shall apply and have effect as if the removal of such apparatus had been required by the appropriate authority under paragraph (4) thereof; and
- (ii) nothing in this sub-paragraph shall preclude the appropriate authority from submitting at any time, or from time to time, but in no case less than twenty-eight days before commencing the execution of any such works, a new plan, section and description thereof in lieu of the plan, section and description previously submitted, and thereupon the provisions of this paragraph shall apply to, and in respect of, such new plan, section and description;
- (c) The appropriate authority shall not be required to comply with sub-paragraph (a) of this paragraph in a case of emergency but, in such a case, they shall give to the undertakers notice so soon as reasonably practicable and a plan, section and description of the works so soon as reasonably practicable thereafter, and shall comply with sub-paragraph (b) of this paragraph so far as reasonably practicable in the circumstances:
- (9) If in consequence of the exercise of the powers of this Act the access to any apparatus is materially obstructed the appropriate authority shall provide alternative means of access to such apparatus:

PART IV
—cont.

(10) Where, in consequence of this Act, any part of any street, bridleway or footpath in which any apparatus is situate ceases to be part of a street, bridleway or footpath the undertakers may exercise the same rights of access to such apparatus as they enjoyed immediately before the passing of this Act, but nothing in this paragraph shall prejudice or affect any right of the appropriate authority or of the undertakers to require removal of such apparatus under this section or the power of the appropriate authority to execute works in accordance with paragraph (8) of this section:

(11) The appropriate authority shall repay to the undertakers the reasonable expenses incurred by the undertakers in, or in connection with—

(a) the removal and relaying or replacing, alteration or protection of any apparatus or the provision and construction of any new apparatus under any of the provisions of this section;

(b) the cutting off of any apparatus from any other apparatus; and

(c) any other work or thing rendered reasonably necessary in consequence of the exercise by the appropriate authority of any of the powers of this Act:

1950 c. 39.

Provided that subsections (3) and (4) of section 23 of the Public Utilities Street Works Act 1950 shall, so far as applicable, extend and apply to any payment to be made by the appropriate authority under this paragraph as if the works hereinbefore in this paragraph mentioned were such undertakers' works as are referred to in the said subsection (3), and as if in that subsection for the words "specified as so necessary in a specification of the works settled under Part I of the Fourth Schedule to this Act or agreed so to be by the promoting authority" there were substituted the words "agreed or settled by arbitration under section 37 (For protection of certain statutory undertakers) of the Merseyside Metropolitan Railway Act 1975":

(12) If by reason, or in consequence of, the execution or failure of any of the Executive's works or the Board's works (as the case may be), or any subsidence resulting from any of those works, any damage to any apparatus (other than apparatus the repair of which is not reasonably necessary in view of its intended removal for the purposes of those works) or property of the undertakers, or any interruption in the supply of

electricity, gas or water (as the case may be) by the undertakers, shall be caused, the appropriate authority shall bear and pay the cost reasonably incurred by the undertakers in making good such damage, or restoring the supply, and shall—

(a) make reasonable compensation to the undertakers for any loss sustained by them; and

(b) indemnify the undertakers against all claims, demands, proceedings, costs, damages and expenses which may be made or taken against or recovered from, or incurred by, the undertakers;

by reason, or in consequence of, any such damage or interruption:

Provided that—

(i) nothing in this paragraph shall impose any liability on the appropriate authority with respect to any damage or interruption to the extent that such damage or interruption is attributable to the act, neglect or default of the undertakers, their officers, servants, contractors or other agents;

(ii) the undertakers shall give to the appropriate authority reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent of the appropriate authority:

- (13) Notwithstanding the temporary stopping up or diversion of any highway under the powers of section 15 (Temporary stoppage of highways) of this Act, the undertakers shall be at liberty at all times to execute and do all such works and things in, upon or under any such highway as may be reasonably necessary to enable them to inspect, repair, maintain, renew, remove or use any apparatus which at the time of the stopping up or diversion was in that highway:
- (14) The appropriate authority shall so far as is reasonably practicable so exercise the powers conferred by section 19 (Underpinning of houses near works) of this Act as not to obstruct or render less convenient the access to any apparatus:
- (15) (a) Any difference arising between the appropriate authority and the undertakers under this section (other than a difference as to the meaning or construction of this section) shall be determined by arbitration;

PART IV
—cont.

- (b) In determining any difference under this section the arbitrator may, if he thinks fit, require the appropriate authority to execute any temporary or other works so as to avoid, so far as may be reasonably possible, interference with the use of any apparatus.

For protection
of Post
Office.

38. For the protection of the Post Office, the following provisions shall, unless otherwise agreed in writing between the appropriate authority and the Post Office, apply and have effect:—

- (1) The appropriate authority shall so construct their electric lines and works of all descriptions and shall so work that part of their undertaking which consists of such parts of Works Nos. 1 to 7 as are for the time being worked by electrical power in all respects as to prevent any interference, whether by induction or otherwise, with the telegraphic lines from time to time laid down or used by the Post Office or with telegraphic communication by means of such lines:

Provided that this paragraph shall not apply to any telegraphic line laid down or placed by the Post Office in or along any of the said Works Nos. 1 to 7 or any railway immediately connected therewith in pursuance of the powers conferred on the Post Office by section 6 of the Telegraph Act 1878:

1878 c. 76.

- (2) (a) If any telegraphic line belonging to, or used by, the Post Office situate within one mile of any part of the said works is injuriously interfered with and the Post Office is of opinion that such injurious interference is or may be due to the construction of the said works or to the working of the same, an engineer of the Post Office appointed by them in that behalf, or any person appointed in writing by him for the purpose of this section, may, by arrangement with the engineer of the appropriate authority, at any time when electrical energy is being generated or used by, or supplied to, the appropriate authority, enter any of the said works for the purpose of inspecting the appropriate authority's plant and the working of the same, and the appropriate authority shall, in the presence of the engineer so appointed by the Post Office or the person so appointed by him, make such electrical tests as may reasonably be required by the Post Office and shall produce for the inspection of the Post Office the records kept by the appropriate authority pursuant to any regulations made by the Secretary of State which may for the time being be in force with respect to the said works;

(b) If any telegraphic line belonging to, or used by, the Post Office situate within one mile of any part of the authorised works is injuriously interfered with and the Post Office is unable to ascertain whether such injurious interference is caused by the appropriate authority or by other persons generating or using electrical currents for traction purposes, the Post Office may, by such notice as may be reasonably required in the circumstances, require the appropriate authority to make, at such reasonable times as the Post Office may specify, such reasonable experiments (by working their generating stations, running their carriages or cars, or otherwise working any part of the said works or, in case of continuous working, by stopping the electricity generated or used for the purposes of the said works at such times as would not interfere with the traffic thereon) as the Post Office may deem necessary to facilitate the discovery of the cause of the interference:

(3) For the purposes of this section any telegraphic line belonging to, or used by, the Post Office shall be deemed to be injuriously interfered with by an act or work if telecommunication by means of such line is, whether through induction or otherwise, in any manner affected by such act or work or by any use made of such work:

(4) (a) Where in pursuance of section 12 (Further works and powers of Board) of this Act the appropriate authority stop up and discontinue the whole or any part of any street or footpath, the following provisions of this paragraph shall have effect in relation to so much of any telegraphic line belonging to, or used by, the Post Office as is in the land which by reason of the stopping up ceases to be a street or footpath or part thereof (in this paragraph referred to as “the affected line”), that is to say:—

(i) the power of the Post Office to remove the affected line shall be exercisable notwithstanding the stopping up, so however that the said power shall not be exercisable as respects the whole or any part of the affected line after the expiration of a period of three months from the date of the sending of the notice referred to in sub-paragraph (b) of this paragraph unless, before the expiration of that period, the Post Office has given notice to the appropriate authority of its intention to remove the affected line, or that part thereof, as the case may be;

PART IV
—cont.

(ii) the Post Office may, by notice in that behalf to the appropriate authority, abandon the affected line, or any part thereof, and shall be deemed, as respects the affected line, or any part thereof, to have abandoned it at the expiration of the said period of three months unless, before the expiration of that period, the Post Office has removed it or given notice of its intention to remove it;

(iii) the Post Office shall be entitled to recover from the appropriate authority the expense of providing in substitution for the affected line, and any telegraphic line connected therewith which is rendered useless in consequence of the removal or abandonment of the affected line, a telegraphic line in such other place as the Post Office may require;

(iv) where under sub-paragraph (ii) of this sub-paragraph the Post Office has abandoned the whole or any part of the affected line, it shall vest in the appropriate authority and the provisions of the Telegraph Acts 1863 to 1916 shall not apply in relation to it as respects anything done or omitted after the abandonment thereof;

(b) So soon as is practicable after the whole or any part of a street or footpath has been stopped up under the powers referred to in sub-paragraph (a) of this paragraph the appropriate authority shall send by post to the Post Office a notice informing it of such stopping up:

(5) The exercise of the powers conferred by section 15 (Temporary stoppage of highways) of this Act in relation to a highway shall not affect the powers of the Post Office under the Telegraph Acts 1863 to 1916 to maintain, inspect, repair, renew or remove telegraphic lines or to open or break up that highway for any of those purposes:

(6) The appropriate authority shall, so far as is reasonably practicable, so exercise the powers conferred by section 19 (Underpinning of houses near works) of this Act as not to obstruct or render less convenient the access to any telegraphic line belonging to, or used by, the Post Office:

1878 c. 76.

(7) Section 7 of the Telegraph Act 1878 shall apply in respect of any work of construction or alteration authorised by an order made under section 44 (Moving pavements) of this Act as if the work were authorised by an Act of Parliament:

PART IV
—cont.

- (8) If by reason or in consequence of the construction or failure of any of the Board's works or the Executive's works (as the case may be) or any subsidence resulting from any of those works any damage to any telegraphic line belonging to, or used by, the Post Office (other than a line the repair of which is not reasonably necessary in view of its intended removal for the purposes of those works) or any property of the Post Office, or any interruption in telecommunication by means of any such line or property, shall be caused, the appropriate authority shall bear and pay the cost reasonably incurred by the Post Office in making good such damage, or restoring telecommunication, and shall—

(a) make reasonable compensation to the Post Office for loss sustained by it; and

(b) indemnify the Post Office against claims, demands, proceedings, costs, damages and expenses which may be made or taken against, or recovered from, or incurred by, the Post Office;

by reason or in consequence of any such damage or interruption:

Provided that—

(i) nothing in this paragraph shall impose any liability on the appropriate authority with respect to any damage or interruption to the extent that such damage or interruption is attributable to the act, neglect or default of the Post Office, its officers, servants, contractors or other agents; and

(ii) the Post Office shall give to the appropriate authority reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent of the appropriate authority:

- (9) Any difference arising between the appropriate authority and the Post Office under this section (other than a difference as to the meaning or construction of this section) shall be determined by arbitration.

39. For the protection of W. H. Smith & Son Limited (here- For
after in this section called "the company") the following pro- protection of
visions shall, unless otherwise agreed in writing between the W. H. Smith
appropriate authority and the company, apply and have effect:— & Son
Limited.

- (1) In this section—

"the company" includes the successors in title to, and assigns of, the interest of W. H. Smith & Son Limited as owners of the protected premises;

PART IV
—cont.

“the prescribed distance” means the distance measured in a horizontal plane 8 metres from the external boundary of the protected premises;

“the protected premises” means the lands numbered on the deposited plans 396 in the city of Liverpool;

“the signed plan” means the document signed in duplicate by David James the Chairman of the Committee of the House of Commons to which the Bill for this Act was referred of which one has been deposited in the office of the Clerk of the Parliaments and one in the Private Bill Office of the House of Commons:

- (2) In the execution of any authorised work comprising railways in or under the protected premises the appropriate authority will not deviate upwards from the levels thereof shown on the deposited sections to any extent exceeding 1.5 metres, and will not construct under the existing warehouse and bookstall within the protected premises any tunnel forming part of any such work with an internal height above the upper surface of the rails exceeding 5.5 metres:
- (3) Notwithstanding the provisions of subsection (1) of section 22 (Power to acquire lands) of this Act, except as provided in paragraphs (4) to (7) of this section the appropriate authority shall acquire compulsorily under the powers of Part III of this Act only such easements and rights in the subsoil and under-surface of the protected premises as they may require for the purpose of constructing, altering, maintaining, protecting, renewing and using the authorised works:
- (4) If, for the purpose of constructing any of the authorised works in or under the protected premises, the appropriate authority require the use of any part of the surface of the lands in the area within the protected premises shown coloured blue on the signed plan, they shall serve notice to treat upon the company for the acquisition of such interest as they may require in that part of those lands, not exceeding in total 600 square metres in extent, but, except as provided by paragraphs (3) and (7) of this section, shall acquire in those lands only such rights as they may reasonably require for that purpose and shall on the completion of the construction of those works reinstate the surface of the lands to the reasonable satisfaction of the company:
- (5) (a) If, for the purpose of constructing, altering, maintaining, protecting, renewing and using a ventilation and

pumping station as part of the authorised works in or under the protected premises, the appropriate authority require any part of the lands in the area within the protected premises shown coloured brown or red on the signed plan, they shall serve notice to treat upon the company for the acquisition of such part of the lands within the area so coloured brown or red, not exceeding 120 square metres in extent, as they may so require, the western boundary of that part of the lands to be so acquired being within 30 metres from the western boundary of the protected premises;

- (b) If, for the purpose of constructing the said ventilation and pumping station, the appropriate authority require the use of any part of the surface of the lands in the area within the protected premises shown coloured brown or red on the signed plan, they shall serve notice to treat upon the company for the acquisition of such interest as they may so require in that part of those lands, not exceeding in total (including any part of the lands within the area so coloured brown) 550 square metres in extent, but, except as provided by subparagraph (a) of this paragraph and paragraphs (3) and (7) of this section, shall acquire in those lands only such rights as they may reasonably require for that purpose and shall on the completion of the construction of those works reinstate the surface of the lands to the reasonable satisfaction of the company:
- (6) (a) If, for the purpose of obtaining access for constructing the said ventilation and pumping station or of providing alternative access to the protected premises for the purposes of the company during the construction of the authorised works, the appropriate authority require the use of any part of the lands within the protected premises shown coloured green on the signed plan, including the wall and embankment on the boundary of the protected premises within the area so coloured green, they shall serve notice to treat upon the company for the acquisition of such interest as they may so require in that part of those lands, not exceeding 450 square metres in extent, but, except as provided by paragraphs (3) and (7) of this section, shall acquire in those lands only such rights as they may reasonably require for that purpose, including the right to remove any part or parts of the said wall or embankment;
- (b) The appropriate authority shall lay out with a metalled surface to the reasonable satisfaction of the company

PART IV
—cont.

any part of the lands within the area so coloured green on which may be provided any alternative access to the protected premises for the purposes of the company during the construction of the authorised works and, unless otherwise agreed by the company, the appropriate authority shall, upon completion of the construction of those works reinstate the said wall and embankment to the reasonable satisfaction of the company:

- (7) If, for the purpose of obtaining access for altering, maintaining, protecting, renewing and using the said ventilation and pumping station after construction, the appropriate authority require a right of access over the protected premises they shall serve notice to treat upon the company for the acquisition of such right of access as they may so require between the points lettered A and C on the signed plan and the line of such right of access between those points shall be agreed between the appropriate authority and the company or, failing agreement, determined by arbitration:
- (8) The appropriate authority shall not exercise the powers of section 11 (3) of the Act of 1965 as applied by this Act to enter upon any part of the protected premises for the purposes of making inspection pits or probing or boring without the consent of the company, which consent shall not be unreasonably withheld:
- (9) If the appropriate authority acquire any subsoil or under-surface in the protected premises, or any easement or right in such subsoil or under-surface, for the purposes of the construction of the authorised works the company may make its claim for compensation in respect of any structural damage arising by reason of the construction of the authorised works, or any injurious affection to the protected premises by reason of the working of the railway comprised in the authorised works, separately from any claim for compensation in respect of the subsoil or under-surface or easement or right so acquired at any time before the expiration of two years from the date of the opening for public traffic of the railway comprised in the authorised works:
- (10) (a) During the construction of the authorised works the appropriate authority shall provide such access for pedestrians and vehicles within the protected premises and to and from the protected premises and Old Thomas Lane as is required by the company for the purpose of the business for the time being carried on at the protected premises at all times at which such access is reasonably

so required, such access to and from the protected premises and Old Thomas Lane being provided by the appropriate authority to the satisfaction of the company either—

PART IV
—cont.

(i) at or near the existing entrance to the protected premises at the point lettered A on the signed plan; or

(ii) by way of a new entrance at the point lettered B on the signed plan and a new access way thereto from the western end of Molineux Avenue, so long as there shall exist and remain in force a traffic regulation order allowing the free and uninterrupted flow of the company's traffic at all such times as aforesaid;

and if such access is not so provided the appropriate authority shall pay compensation for any loss or damage sustained by the company as a result thereof whether or not such loss or damage involves an injury to land;

(b) During the construction of the authorised works the appropriate authority shall, in consultation with the highway authority and such other persons as are concerned, including the company, use their best endeavours to avoid interference with the free passage of pedestrians, and of vehicles having a gross weight not exceeding 32 tons, in Old Thomas Lane and Thomas Lane:

(11) Before commencing the construction of the authorised works the appropriate authority shall, if requested to do so by the company after service upon it by the appropriate authority of notice to treat in respect of any easement or right in the subsoil or under-surface of the protected premises, survey the buildings within the protected premises in conjunction with an engineer or surveyor appointed by the company, if available for that purpose, with a view to settling an agreed statement of the condition of any such building immediately before the commencement of the authorised works, and shall fix such tell-tales on any building within the protected premises as may be reasonably required by the company:

Provided that nothing in this paragraph shall impose any obligation upon the appropriate authority to do anything unless facilities for the purpose are made available by the company without charge:

(12) Before commencing the construction of the authorised works in or under the protected premises or within the

PART IV
—*cont.*

prescribed distance the appropriate authority shall give to the company not less than twenty-eight days' notice of their intention to do so:

(13) When commenced the construction of the authorised works in or under the protected premises or within the prescribed distance shall be completed with all reasonable dispatch:

(14) (a) Except as provided by sub-paragraph (b) of this paragraph any difference arising between the appropriate authority and the company under this section (other than a difference as to the meaning or construction of this section) shall be determined by arbitration;

(b) Any dispute arising between the appropriate authority and the company as to compensation payable under paragraph (10) (a) of this section shall be determined under and in accordance with Part I of the Land Compensation Act 1961.

1961 c. 33.

Saving rights
of Duchy of
Lancaster.

40. Without prejudice to the general law concerning the applicability of statutes to the Duchy of Lancaster, nothing in this Act shall extend or operate to authorise the appropriate authority to take, use, enter upon or in any manner interfere with any land, soil, water or any manorial rights or any other rights of whatsoever description belonging to Her Majesty in right of Her Duchy of Lancaster without the consent in writing of the Chancellor for the time being of the said duchy first had and obtained (which consent may be given either unconditionally or subject to such conditions and upon such terms as the said Chancellor shall deem necessary or appropriate), or take away, prejudice or diminish any estate, right, privilege, power or authority vested in, or enjoyed or exercisable by, Her Majesty, Her Heirs and Successors in right of Her said duchy.

Crown rights.

41.—(1) Nothing in this Act affects prejudicially any estate, right, power, privilege or exemption of the Crown and, without prejudice to the generality of the foregoing, nothing in this Act authorises the appropriate authority to take, use or in any manner interfere with any land or hereditaments or any rights of whatsoever description belonging to Her Majesty in right of Her Crown and under the management of the Crown Estate Commissioners, or belonging to a government department or held in trust for Her Majesty for the purposes of a government department, without the consent in writing of those commissioners on behalf of Her Majesty, or (as the case may be) the consent in writing of that government department, first had and obtained for that purpose.

(2) Nothing in this section shall prejudice or affect the exercise of statutory powers to carry out works in or affecting any highway vested in, or maintained by, the Secretary of State in relation to which the provisions of section 34 (As to highways, traffic, etc.) of this Act apply.

PART IV
—cont.

PART V

MISCELLANEOUS AND GENERAL

42.—(1) The Executive may make byelaws—

Byelaws
relating to
bus under-
taking.

- (a) regulating the use of premises belonging to or leased by the Executive for, or in connection with, bus services within their area, including premises provided at stations for interchange between road and rail traffic, the maintenance of order on such premises and the conduct of all persons, including their officers and servants, while on such premises; and
- (b) byelaws for the safe custody and redelivery or disposal of property found in premises belonging to or leased by the Executive for, or in connection with, such bus services and for fixing the charges which may be made in respect thereof.

(2) Without prejudice to the generality of the foregoing subsection, byelaws under subsection (1) (a) of this section may contain provisions—

- (a) with respect to interference with, or obstruction of, premises or facilities provided in connection with such bus services;
- (b) with respect to the use of tobacco or other substances and the prevention of nuisances;
- (c) with respect to the receipt and delivery of goods and the payment of charges with respect to the conveyance, custody or handling of goods;
- (d) for regulating the passage of bicycles and other vehicles on footways and other premises controlled by the Executive and intended for the use of persons on foot.

(3) Any byelaws made under this section may provide that any person contravening them shall be liable on summary conviction to a fine not exceeding £25 for each offence.

(4) Without prejudice to the taking of proceedings under subsection (3) of this section, if the contravention of any byelaws having effect under this section is attended with danger or annoyance to the public, or hindrance to the Executive, in the lawful conduct of bus services, it shall be lawful for the Executive summarily to take action to obviate or remove the danger, annoyance or hindrance.

PART V
—cont.

1962 c. 46.

(5) The provisions of subsections (5) to (12) of section 67 of the Transport Act 1962 shall apply to any byelaws made by the Executive under this section as if for references to the board, or to the board in question, there were substituted references to the Executive.

Power to
raise money
abroad.

1968 c. 73.

43.—(1) Any method by which the Executive are empowered by any enactment to raise any money which they are authorised to borrow (including the raising of money by means of the issue of bearer bonds or other securities to bearer under the powers of section 12 (3) of the Transport Act 1968) shall, notwithstanding anything in such enactment, be deemed to include the raising of money, either alone or jointly with a local authority, by that method outside the United Kingdom or in any foreign currency.

(2) The powers conferred by the foregoing subsection shall not be exercised except with the consent of the Treasury and subject to such conditions as the Treasury may impose.

(3) The enactments empowering the Executive to raise money shall have effect in relation to a transaction authorised by this section for the raising of money in a foreign currency as if for any reference in those enactments to sterling there were substituted a reference to the foreign currency and for any reference therein to a sum expressed in terms of sterling there were substituted a reference to the sum expressed in terms of the foreign currency (adjusted, where necessary, to produce an amount which the Executive consider appropriate having regard to all the circumstances of the transaction).

1946 c. 58.

(4) Nothing in this section shall be taken as exempting the Executive from the provisions of any order under section 1 of the Borrowing (Control and Guarantees) Act 1946, and for the purposes of that Act and any such order the Executive shall be deemed to be a local authority within the meaning of that Act.

1947 c. 14.

(5) It shall not be lawful to exercise the powers conferred by this section except in compliance with the Exchange Control Act 1947.

Moving
pavements.

44.—(1) The Secretary of State may, by order made upon the application of the Executive, authorise them to construct, alter, maintain and operate escalators or moving pavements and works connected therewith within their area.

(2) An order made under this section may contain such incidental, consequential and supplementary provisions as the Secretary of State thinks necessary or expedient.

(3) An order under this section may authorise the Executive to acquire compulsorily any land required for the construction, alteration, maintenance or operation of escalators or moving pavements or works connected therewith.

(4) The provisions of Schedule 4 to this Act shall have effect with respect to applications and orders under this section:

Provided that where the powers applied for by an application under this section do not consist of or include any power to acquire compulsorily any land, Part II of the said Schedule 4 shall not have effect with respect to that application or to any order made thereon, and an order made on that application shall not confer any power to acquire compulsorily any land.

(5) Before making application to the Secretary of State for an order under this section the Executive shall consult the highway authority and the local planning authority concerned.

45. Where under this Act any difference (other than a difference to which the provisions of the Act of 1965, as applied by this Act, apply) is to be referred to or settled by arbitration, then, unless otherwise provided, the difference shall be referred to, and settled by, a single arbitrator to be agreed between the parties or, failing agreement, to be appointed on the application of either party (after notice in writing to the other) by the President of the Institution of Civil Engineers. Arbitration.

46.—(1) Section 289 of the Town and Country Planning Act 1971 (which for the avoidance of doubt declares that the provisions of that Act and any restrictions or powers thereby imposed or conferred in relation to land apply to land notwithstanding that provision is made by any local Act passed before or during the Session 10 & 11 Geo. 6 for authorisation or regulation of development of the land) shall apply to this Act as if it had been passed during that session; and accordingly the Town and Country Planning Acts 1971 and 1972 and orders, regulations, rules, schemes and directions made or given thereunder shall apply to development authorised by this Act. Saving for Town and Country Planning Acts 1971 and 1972. 1971 c. 78.

(2) In their application to development authorised by this Act, article 3 of, and Class XII in Schedule 1 to, the Town and Country Planning General Development Order 1973 (which permit development authorised by private Act designating specifically both the nature of the development thereby authorised and the land on which it may be carried out) shall have effect as if the authority to develop given by this Act were limited to development begun within ten years after the passing of this Act.

(3) In this section the reference to article 3 of, and Class XII in Schedule 1 to, the Town and Country Planning General

PART V
—*cont.*
1971 c. 78. Development Order 1973 includes a reference to corresponding provisions of any general order superseding that order made under section 24 of the Town and Country Planning Act 1971 or any corresponding provision of an Act repealing that section.

Costs of Act. 47. All costs, charges and expenses of, and incidental to, the preparing for, obtaining and passing of this Act, or otherwise in relation thereto, shall be paid by the Executive and may, in whole or in part, be defrayed out of revenue.

SCHEDULES

SCHEDULE 1

Section 14.

Street (1)	Marking (2)
In the metropolitan county of Merseyside, city of Liverpool—	
Besford Road	x
Bowring Park Road	x
new street (realigned Bowring Park Road)	x, y
Chandos Street	x
Crown Street	x
Hartley Avenue	x
Hedgefield Road	x
Moorgate Street	x
Old Thomas Lane	x
Paddington	x
Queen's Drive	x
new street (realigned Queen's Drive)	x, y
Smithdown Lane	x
Thomas Lane	x
Townsend Avenue	x
Tunnel Road	x, y
Utting Avenue	x
unnamed road (rear 26/28 Broadway)	x
Walton Hall Avenue	x
In the metropolitan county of Merseyside, district of Knowsley (formerly in the county palatine of Lancaster, urban district of Huyton-with-Roby)—	
Childwall Lane	x
Derby Road	x
Huyton Hey Road	x
In the metropolitan county of Merseyside, district of Knowsley (formerly in the county palatine of Lancaster, urban district of Kirkby)—	
Whitefield Drive	x
In the metropolitan county of Merseyside, district of Knowsley (formerly in the county palatine of Lancaster, rural district of Whiston, parish of Halewood)—	
unnamed road (Tartbridge Road to Suttons Lane) ...	x

Section 22,

SCHEDULE 2

LANDS REFERRED TO IN SUBSECTION (2) OF SECTION 22 (POWER TO ACQUIRE LANDS) OF THIS ACT

PART I

Purposes for which lands may be acquired or used (1)	Area (2)	No. on deposited plans (3)
For the provision of a working site and access thereto at Vine Street, for access to the works through the Wapping Tunnel for construction purposes and for ventilation by means of the Wapping Tunnel	In the metropolitan county of Merseyside— city of Liverpool	109 to 111 and 243 to 271.
For the provision of a working site and access thereto at Bamber Street for construction purposes	In the metropolitan county of Merseyside— city of Liverpool	208 to 234.
For the provision of a working site and access thereto at Broad Green for construction purposes	In the metropolitan county of Merseyside— city of Liverpool	394.
For the provision of a working site and access thereto at Hartley's Village for construction purposes	In the metropolitan county of Merseyside— city of Liverpool	489 to 491.
For the construction of a station at Bowring Park	In the metropolitan county of Merseyside— district of Knowsley (formerly in the county palatine of Lancaster, urban district of Huyton-with-Roby)	38 to 42.

PART II

SCH. 2
—cont.

Purposes for which lands may be acquired or used (1)	Area (2)	No. on deposited plans (3)
For the construction of a station at Childwall Valley	In the metropolitan county of Merseyside— city of Liverpool	462 to 465.
For the extension and improvement of the station at West Derby	In the metropolitan county of Merseyside— city of Liverpool	474 to 477.
For the construction of a station at Broadway	In the metropolitan county of Merseyside— city of Liverpool	478a and 478 to 485.
For the construction of a station at Walton Hall Avenue	In the metropolitan county of Merseyside— city of Liverpool	486 to 488.
For the construction of a station at Halewood Green	In the metropolitan county of Merseyside— district of Knowsley (form- erly in the county pala- tine of Lancaster, rural district of Whiston, parish of Halewood)	91 to 96.
For the construction of a station at Longview Drive	In the metropolitan county of Merseyside— district of Knowsley (form- erly in the county palatine of Lancaster, urban district of Huyton-with-Roby)	80 to 83.

Section 28.

SCHEDULE 3

LANDS REFERRED TO IN SECTION 28 (ONLY SUBSOIL OR EASEMENTS TO BE
ACQUIRED UNDER CERTAIN LANDS) OF THIS ACT

In the metropolitan county of Merseyside, city of Liverpool—

The lands numbered 6 to 12, 14 to 17, 19 to 21, 23 to 29, 31 to 43, 46 to 52, 93 to 105, 107, 110, 111, 113 to 115, 118, 123 to 137, 140 to 147, 149 to 161, 163 to 168, 170 to 173, 175, 176, 178 to 199, 238, 242, 244, 245, 247 to 258 and 260 to 263 on the deposited plans.

SCHEDULE 4

Section 44.

ORDERS RELATING TO ESCALATORS AND MOVING PAVEMENTS

PART I

1. In this Schedule the expression "area affected by the order" means the area of the Executive.

2. Before making application to the Secretary of State for an order under section 44 of this Act the Executive shall submit to the Secretary of State a draft of the order, and shall publish at least once in each of two successive weeks, in one or more newspapers circulating in the area affected by the order, a notice—

- (a) stating the general effect of the order as prepared in draft;
- (b) specifying a place in the said area where a copy of the draft order and of any relevant map or plan may be inspected by any person free of charge at all reasonable times during the period of twenty-eight days beginning with the date of the first publication of the notice; and
- (c) stating that any person may, within that period, by notice in writing to the Secretary of State object to the making of the order.

3. Not later than the date on which the notice is first published in pursuance of paragraph 2 of this Schedule the Executive shall serve a copy of the notice on every local authority and statutory undertakers authorised to carry on any undertaking for the supply of gas, being an authority or undertakers within whose area any moving pavement or footway and other works are to be constructed and on the Post Office.

4. The Executive shall also publish a notice in the London Gazette stating that the draft order has been submitted to the Secretary of State, naming every local authority on whom a notice is required to be served under paragraph 3, specifying a place where a copy of the draft order and of any relevant map or plan may be inspected, and giving the name of the newspaper in which the notice under paragraph 2 of this Schedule was published and the date of an issue containing the notice.

5. The Executive shall, at the request of any person, furnish him with a copy of the draft order on payment of such charge, not exceeding 10p, as the Executive think reasonable.

6. The Secretary of State may make the order either in the terms of the draft order or in those terms as altered in such manner as he thinks fit; but where he proposes to make any alteration, and considers that any persons are likely to be adversely affected by it, the Executive shall give and publish such additional notices in such manner as the Secretary of State may require.

7. If before the end of the period of twenty-eight days referred to in paragraph 2 of this Schedule, or of twenty-five days from the publication in the London Gazette of the notice under paragraph 4 of this Schedule, or of any period specified in notices under paragraph 6

SCH. 4
—*cont.*

of this Schedule, notice in writing of an objection is received by the Secretary of State from any person on whom a notice is required to be served under this Schedule, or from any other person appearing to the Secretary of State to be affected by the order as prepared in draft or as proposed to be altered, and the objection is not withdrawn, the Secretary of State, before making the order, shall either—

- (a) cause a local inquiry to be held; or
- (b) afford to the objector and to the Executive an opportunity of appearing before, and being heard by, a person appointed by the Secretary of State for the purpose.

PART II

1946 c. 49.

8. In this Part of this Schedule “the Act of 1946” means the Acquisition of Land (Authorisation Procedure) Act 1946.

1968 c. 23.

9.—(1) Besides serving a copy of the notice referred to in paragraph 3 of this Schedule on the local authorities therein referred to the Executive shall, not later than the date on which the notice is first published in pursuance of paragraph 2 of this Schedule, serve a copy of the notice on every owner, lessee or occupier (except tenants for a month or for any period less than a month and statutory tenants within the meaning of the Rent Act 1968) of any land to which the draft order relates as land to be compulsorily acquired.

(2) Where any such land as aforesaid is ecclesiastical property (that is to say land belonging to any ecclesiastical benefice, or being or forming part of a church subject to the jurisdiction of the bishop of any diocese or the site of such a church, or being or forming part of a burial ground subject to such jurisdiction) a copy of the notice aforesaid shall also be served as aforesaid on the Church Commissioners.

10. Where any objection received by the Secretary of State under paragraph 7 of this Schedule relates to any powers of compulsory acquisition, the Secretary of State may require the objector to state in writing the grounds of his objection; and if the Secretary of State is satisfied that the objection relates exclusively to matters that can be dealt with in the assessment of compensation, he may disregard the objection for the purposes of paragraph 7 of this Schedule.

11. Notwithstanding anything in paragraph 6 of this Schedule, the order shall not, unless all interested parties consent, confer on the Executive powers to acquire compulsorily any land which they would not have been empowered to acquire by virtue of the order if the order had been made in the terms of the draft submitted by them.

12. Part III of Schedule 1 to the Act of 1946 (which makes special provision with respect to land of local authorities and statutory undertakers, common land, inalienable land of the National Trust and ancient monuments) shall apply to the order as it applies to a compulsory purchase order within the meaning of that Act.

13. The order shall incorporate the Act of 1965, and that Act and the enactments relating to the compensation payable in respect of the compulsory acquisition of land shall apply accordingly subject to such exceptions and modifications (if any) as may be specified in the order.

14. So soon as may be after the order has been made, the Executive shall publish, in one or more newspapers circulating in the locality of the land in respect of which the powers of compulsory acquisition are conferred, a notice describing that land and stating that the order has been made conferring powers of compulsory acquisition in respect of that land, and naming a place where a copy of the order as made may be inspected at all reasonable hours, and the Executive shall serve a like notice and copy of the order on every such owner, lessee or occupier as is mentioned in paragraph 9 of this Schedule.

15.—(1) In this paragraph “ the special land provisions ” means the provisions of Part III of Schedule 1 to the Act of 1946, as applied by paragraph 12 of this Schedule, and “ the relevant requirements ”, in relation to an order or certificate, means any requirements of this Schedule or of the special land provisions which are applicable to that order or certificate.

(2) Subject to the provisions of sub-paragraph (6) of this paragraph, if any person aggrieved by the order, or by a certificate under the special land provisions, desires to question—

(a) the validity of the order, or of any provision of the order, on the grounds that any powers of compulsory acquisition conferred by the order are not authorised by section 44 of this Act to be so conferred, or that any of the relevant requirements have not been complied with in relation to the order; or

(b) the validity of the certificate, on the grounds that any of the relevant requirements have not been complied with in relation to the certificate;

he may, at any time before the end of the period of six weeks beginning with the date on which notice of the making of the order is first published in accordance with paragraph 14 of this Schedule or (as the case may be) notice of the giving of the certificate is first published in accordance with the special land provisions, make an application for the purpose to the High Court.

(3) On any application under this paragraph, the High Court—

(a) may by interim order suspend the operation of the order, or any provision of the order, or of the certificate, either generally or in so far as it affects any property of the applicant, until the final determination of the proceedings;

(b) if satisfied that any powers of compulsory acquisition conferred by the order are not authorised by section 44 of this Act to be so conferred, or that the interests of the applicant have been substantially prejudiced by a failure to comply with any of the relevant requirements in relation to the order

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—cont.

or the certificate, may quash the order, or any provision of the order, or the certificate, either generally or in so far as it affects any property of the applicant.

(4) Except as provided by the foregoing provisions of this paragraph, the validity of—

- (a) the order, in so far as it confers any powers of compulsory acquisition; or
- (b) any certificate given in connection with the order under the special land provisions;

shall not, either before or after the order or certificate has been made or given, be questioned in any legal proceedings whatsoever.

(5) Subject to the provisions of this paragraph, the order (except where it is subject by virtue of the special land provisions to special parliamentary procedure) and any certificate given in connection with the order under the special land provisions shall become operative on the date on which notice of the making or giving thereof is published as mentioned in sub-paragraph (2) of this paragraph.

(6) Where the order is subject to special parliamentary procedure, sub-paragraphs (2) to (4) of this paragraph—

- (a) shall not apply to the order if it is confirmed by Act of Parliament under section 6 of the Statutory Orders (Special Procedure) Act 1945; and
- (b) in any other case, shall have effect as if the reference in sub-paragraph (2) of this paragraph to the date on which notice of the making of the order is published as therein mentioned were a reference to the date on which the order becomes operative under the said Act of 1945.

1945 c. 18
(9 & 10 Geo 6).

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